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Senate of Virginia Floor Session, Wednesday, March 4, 2026

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[00:26:02] This is the Senate of Virginia, Richmond, Virginia, Senate chamber.

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[00:30:14] archives anytime on the Senate of Virginia's YouTube channel. This is the Senate of Virginia,

[00:31:20] Richmond, Virginia. Senate chamber. The Senate will come to order. The senators will please

[00:33:09] take their seats. Those persons not entitled to the privileges of the floor will retire to the gallery. The senators and all in attendance will please stand if you are able. We will be led in prayer today by the Reverend Dr. Wadi Burnell Thorogood Jr. from New Jerusalem Church of God in Christ, Virginia Beach. And following the prayer, everyone will please remain standing.

[00:33:37] We will be led in the Pledge of Allegiance to the Flag of the United States of America by Senate Page Maven Lackey of Hampton. Let us pray. Eternal and Sovereign Father, we pause in this moment with humility and gratitude recognizing that the strength of our nation has never rested in our power alone but it's in the hope that you bring to us your people we thank you for the freedoms that we cherish for the diversities that shape us for the responsibility entrusted to those who serve in this chamber father today we bring before you these leaders

[00:34:16] in our nation that is both strong yet in need of your protection we're blessed yet we're burdened we're confident yet concerned and we ask that you would draw closer to you and to one another. Even in this gathering now let your peace infuse the atmosphere. Breathe upon our commitment to listen, to learn, and to lead with courage and compassion. Grant these leaders wisdom beyond their own understanding. Remind us that we rise and we fall together and that our future is shaped not by our differences but by our willingness to work together for the

[00:34:50] common good. Let unity be stronger than division. Let hope be louder than chaos. Guide us forward with integrity and peace and we pray this prayer in the name that is above every name. Amen and amen. I pledge allegiance to the flag of the United States of America and to the Republic for staying one nation under God, indivisible, with liberty and justice

[00:35:24] for all. The clerk will call the roll. All those present, please vote aye. Clerk will close the roll.

[00:36:09] You have a quorum, Madam President. Senate Journal for Tuesday, March 3rd, 2026. The senator from Northern Fairfax moves that the reading of the journal be waived. All in favor of waiving the reading of the journal will record their votes aye. Those opposed no.

[00:36:26] Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 32, noes 5.

[00:36:43] Ayes 32, noes 5. The reading of the journal is waived. The clerk will report any communications from the House of Delegates. Senator from Eastern Fairfax. Afternoon, Madam President. Good afternoon. Madam President, I move to waive the reading of the communication from the House of Delegates. The question is, shall the reading of the communication be waived? All in favor of

waiving the reading of the communication from the House of Delegates will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the

[00:37:14] senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 34, no 6. Ayes 34, no 6. The reading of the communication is waived. The clerk will report any communication from the governor. We do not have any Madam President. We've now arrived at the time in our morning hour when we have the honor of welcoming our distinguished guests who are joining us today in the Senate gallery. And I remind everyone of our normal procedure. A senator

[00:37:52] will rise and offer an introduction for his or her visitors. I will then offer the welcome of the Senate and I ask that we all hold our applause until I've had the opportunity to provide the Senate's welcome. The chair recognizes the junior senator from Virginia Beach. Good afternoon Madam President Rice for introduction. The senator has the floor. Thank you Madam President. Members of the Senate, today's invocation was given by my good friend Dr. Wadi Thurgood from the city of Virginia Beach. Pastor Y.D. Thurgood is the presiding pastor of New

[00:38:31] Jerusalem in Virginia Beach, presiding over one of the oldest churches in the historic SeaTac, which is the oldest African American community in the nation in the city of Virginia Beach. He is my good friend as well. He comes from a long family in history in the city. His father and great-grandfather also pastored in the city and so much so that the church that he presides over the street is named after his father and so I want to thank him for for all his his help is important he's an avid community leader as well as his first lady as well who does so much for our youth in our community and it's a pleasure to see

[00:39:10] him today so madam president would you please extend a warm welcome I'm from the Senate thank you senator for that introduction and please remain standing Reverend we are so delighted to have you join us thank you for the prayer and the blessings that you have offered to our Senate chamber and thank you for the honor that you have bestowed in joining us this morning. Senators I ask that we give the very warm welcome of the Senate to the Reverend Dr. Wadi Thorogood from

[00:39:40] Virginia Beach. The chair recognizes the senior senator from Virginia Beach. Thank you madam president I rise for an introduction. The senator has the floor.

[00:39:56] Madam President, I'd like to introduce two outstanding interns serving in my office during the 2026 legislative session. Bryn Wood and Aidan Markley, both seniors who will graduate May 2026 who represent the next generation of public servants in the Commonwealth. Bryn Wood is from Smithfield as a political science major at Old Dominion University. Through this leadership, she has the opportunity to gain first-hand experience in the legislative process while working with both my office and Delegate Leftwich's office. Brenda's worked throughout her college career and previously volunteered with her local

[00:40:36] fire department while in high school. As a daughter of two Air Force veterans, she grew up in the military communities across the country and around the world. Experiencing that has really shaped her appreciation for service members and inspired her interest in public service and aviation policy. Aidan Markey is from Vienna and attends Virginia Commonwealth University where he is pursuing dual majors in homeland security and emergency preparedness and criminal justice. He sought this internship to better understand how

[00:41:13] policy is developed and implemented in Virginia. Aiden previously served as a criminal investigative assistant intern with the Arlington County Police Department and currently volunteers with

the American Red Cross as a blood donor ambassador. He plans to pursue a career in law enforcement and possibly federal service in the future. He enjoys staying active through basketball and fitness.

[00:41:37] Madam President, please offer our two interns the warmest welcome of the Senate. Thank you. Thank you Senator for that introduction and welcome to Bren and to Alden. Thank you so much for joining us and most especially thank you for the work you've done throughout this session in the office of our senator from Virginia Beach. I hope you've learned a great deal and I'm sure you've contributed a lot to the activities and the effective functioning of the office throughout these many weeks. Thank you for being here and we look forward to the good work that you're going to continue to do. Senators, I ask that we

[00:42:13] give the very warm welcome of the Senate to the interns from the office of the senior senator from Virginia Beach, Bryn Wood and Alden Markley. The chair recognizes a senator from Richmond City. Thank you, Madam President. I rise for the purpose of an introduction. The senator has the floor. Thank you, Madam President. Today in the gallery, we are joined by a boisterous group of young ladies, the Manchester Middle School girl cheerleaders,

[00:42:49] if they would stand. Collective awe goes in the house. They're joined today by their coach and teacher, Shannon Thorne, Principal Tony Kilpatrick, Chair of Chesterfield County School Board, school board member chair Lisa Hudgens, and then as well we are joined as well by school superintendent John Murray. I would ask that all of them would stand as well and share with them.

[00:43:16] I'm honored to recognize the Manchester Middle School cheerleaders for their remarkable growth, resilience, and commitment to excellence both on and off the mat. This marks the first year since 2003 that the Manchester Middle School cheerleaders have placed in the county middle school chair competition.

[00:43:34] What makes this achievement especially meaningful is not just the result but the journey behind it. Over the past three seasons, these coaches and athletes have transformed a developing program into one defined by perseverance, sisterhood, and pride in their community. Through countless hours of practice, creative problem-solving, and unwavering dedication, they overcame significant barriers, including limited practice space and inequitable access to resources we'll talk about that John the students and coaches led fundraising efforts while school leadership worked and secure grant funding for uniforms

[00:44:10] equipment and training opportunities often taken for granted elsewhere their progress is clear madam president and after placing ninth in their first competitive season they earned the team earned the coaches most improved award and this year achieved a second place finish in the newly division that was created this past year.

[00:44:34] More than trophies or placements, these cheerleaders represent the heart of Manchester Middle School and the core values of Chesterfield County Public Schools, equity, integrity, teamwork, and ingenuity. Today we celebrate not just a team, but a powerful story of growth, advocacy, and belonging.

[00:44:52] And Madam President, I pledge to them that I would assist them in their fundraising in the upcoming year by pledging to contribute $1,500 to their efforts. We want to see these young ladies thrive and not just survive. So Madam President, if it be your will, if you would extend a warm welcome to the Senate, to these young ladies.

[00:45:12] Thank you, Senator, for that introduction. And the uniforms are beautiful. So you are all sparkling today. We're so delighted that you are here representing Manchester Middle School. We're

delighted that you brought the superintendent from Chesterfield with you.

[00:45:27] Thank you for doing that and welcome to our Chesterfield superintendent. Thank you for bringing our school board member, Lisa Hutchins, here as well. We're just happy to see all of you. Congratulations on the remarkable success that you have all achieved.

[00:45:43] We know it's all due to teamwork and hard work, and we just wish you the very best as you continue to grow and develop in all your many talents. Senators, I ask that we give the very warm welcome of the Senate to Manchester Middle School Cheer Club and to Superintendent Murray and to our Chesterfield School Board member, Chair Lisa Hudgens.

[00:46:17] The chair recognizes the Senator from Portsmouth. you madam president madam president i rise for the purpose of an introduction the senator has the floor thank you madam president i would like for you to welcome kelly weems senior director of community impact at goodwill industries of the valley in roanoke this is where the first adult high school known as excel center was created by the general assembly in 2023 and funded by the

[00:46:50] Commonwealth in 2025. With Kelly are two of the 60 students. Accompanied Kelly is Brittany Mills. Brittany brings her son to the free child care facility located inside of the Excel Center.

[00:47:06] Brittany is on track to be the first Excel Center graduate in 2026. Brittany did not finish high school in 2007 and has been waiting tables for 18 years. Brittany has experienced firsthand the only way to elevate her family is to obtain her standard high school diploma.

[00:47:25] And this has been prevented her from changing careers until now. Brittany will soon start a dental assistant program and pursue a dental career that will be life-changing for her and her family. Also with Kelly is Kiara Williams, an Excel student who is on pace to graduate with her standard high school diploma in 2026.

[00:47:47] it will soon begin a welding career for her career pathway. Kiera would like to start her own mobile welding truck and show her daughter that women can not only compete but can conquer the pathways typically less taken by women. She is very thankful for the positive changes she has already experienced within herself by coming back to school. Brittany, Kiera and the other Excel students thank you for your support of this opportunity for virginia residents to achieve a high standard high school diploma at any age and begin a career in today's competitive workforce madam president i would

[00:48:27] be delighted if you would extend to them the very warm welcome of the senate thank you senator for that introduction and welcome to kelly to britney to kiara thank you so much for the exemplary work that's happening at the excel center a few years ago i had the opportunity to tour it while it was still under construction. It was quite impressive then. I'm looking forward to coming back and seeing the finished product and all the good work that's happening at the Excel Center impacting the lives of so many people in the community. Thank you for the excellent work that that is happening there. Senators I ask that we give the very warm welcome of the Senate to our visitors from the

[00:49:06] Excel Center, Kelly, Brittany, and Kiara. The chair recognizes the senator from Roanoke thank you madam president I rise for an introduction senator has the floor thank you madam president I'd like to draw your attention in the gallery to someone that several of you remember Michael Walsh who worked here in the legislative office of myself for several years and over in the Pocahontas

[00:49:42] building when we were in camp over there and Michael did a great job helping constituents. He started with us right before the 2020 session. And then when there was all the unemployment issues caused by COVID, he quickly became an expert at helping people navigate VCE and did a VEC and did an excellent job in helping a lot of Roanokeers get connected quickly and get back on their feet. We really appreciated him. He's still very active in the civic life of the Roanoke Valley, and I'd just like to welcome him back here today. Thank you, Senator, for that

[00:50:18] introduction, and welcome back, Michael. We are all delighted to see you. Thank you for all the work you did during your time in the Senator's office and all that you have continued to do. We are very, very happy to welcome you in the gallery this morning. Senators, I ask that we give the very warm welcome of the Senate to Michael Walsh, who served in the office of the Senator from Roanoke. The chair recognizes the senator from Prince Edward. Thank you, Madam

[00:50:55] President. I rise for an introduction. The senator has the floor. Madam President, I rise to recognize a delegation of cadets and staff from Fork Union Military Academy in Fluvanna County on behalf of myself and the senator from Vata Tide. Founded in 1897 by Dr. William Hatcher, Fork Union is one of the premier all-male military boarding schools in the nation. The The cadets joining us today are graduating seniors who are on the debate team, currently coached by Dr. Alexander Welch.

[00:51:27] These young men all competed in either the state debate meet or the qualifying meet for the National Catholic Forensic League. Together they brought back three medals from the state meet and one cadet qualified as an alternate for the national meet which is being held here in Richmond this summer.

[00:51:44] Had a great conversation with these young men in my office earlier today, really impressed by their drive and their dedication to living lives of purpose as the leaders of tomorrow. I would ask that we give the cadets and staff from Fork Union Military Academy a warm welcome from their Senate.

[00:52:01] Thank you, Senator, for that introduction and welcome to the cadets of Fork Union Military Academy, specifically the debate team and graduating seniors. We're so delighted by your success and all that you have demonstrated in the various competitions.

[00:52:18] I think you might be able to provide some tips to our members on how to debate effectively. No? Well, you're always welcome to share your insights, and we just applaud you for the success. We look forward to your continued success as you graduate this year and head on to your future endeavors.

[00:52:39] Wishing you all the best. Senators, I ask that we give the very warm welcome of the Senate to the debate team from Fork Union Military Academy.

[00:52:58] Senator from Eastern Fairfax. Madam President, I rise for an announcement. The Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senator, I just want to give you a little bit of a preview to the extent I can today.

[00:53:18] Today's obviously revenue bill day, which means we've got to get revenue bills in conference by the end of the day. So there's going to be a little bit of back and forth breaks, et cetera. If you also didn't notice, I think we have a 35-page regular calendar. And courts is supposed to meet this afternoon.

[00:53:36] And we only have 45 bills left to do. And House of Props is also supposed to meet this afternoon. But I can't have a courts meeting and Gen Laws. I'm sorry. Gen Laws has 47 bills in their docket. And we can't exactly have meetings without House members.

[00:53:52] So we're trying to coordinate with them on potentially trying to get out at the same time. So we're going to have committee meetings and then get back over here to do what we have to do this afternoon, et cetera. So still trying to figure it out. But at this point, I think we're probably just going to have to charge ahead until we get some kind of a sign of a break on the other side, which may or may not happen.

[00:54:16] And whatever we don't get done in courts today, for those of you who serve on the courts of justice committee, we're probably going to have to have a meeting tomorrow afternoon when transportation normally meets because they're done with their docket. So that's probably where things are headed. I just wanted to give everybody a heads up, not only people in this room, but people outside this room, that that's where things are probably headed today.

[00:54:36] But if things change, I'll let everybody know. Is there any other business for the morning hour? The clerk will call the calendar. Senate calendar for Wednesday, March the 4th, 2026.

[00:54:55] Page 5. Unfinished business house. House Bill 84. The house has rejected the Senate substitute. Senator from Eastern Fairfax. Page 5, Senator.

[00:55:19] Madam President, I move with all the house bills on the unfinished business on page 5. House Bill 84 through 1487 be placed in the block to insist and request committees of conference.

[00:55:35] Any senator's iron move bill from the block, please do so after the clerk has read the number of the bill. The question is, shall the House bills on the unfinished business on page 5, House Bill 84 through House Bill 1487, be placed in a block to insist and request committees of conference with the understanding that any senator desiring a bill be removed from the block will do so after the clerk has read the number of the bill.

[00:55:59] all in favor of that motion will say aye those opposed no the ayes have it the motion is agreed to the bills are now before us in the block the clerk will read the number of the bills has bill 84 has bill 476 has bill 625 has bill 1487 the question is shall the senate insist and request committees of conference on the house bills in the block all in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the

[00:56:34] senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no, zero. Ayes 40, no, zero. The Senate has insisted and requested committees of conference. House Bill 6. Page 6. Unfinished Business House. House Bill 6. The House acceded to the request for a committee Conference. Comferees on the part of the Senate is named by the chair of Education

[00:57:11] and Health, Senator Favola, are Senators Carol Foy, Favola, and Suterlein. Comferees on the part of the Senate on House Bill 125, is named by the chair of Education and Health, Senator Favola, are Senators Prakarski, Craig, and Van Valkenburg.

[00:57:42] House Bill 276, conferees on the part of the Senate is named by the chair of the Committee for Courts of Justice, Senator Surivelle, are Senators Deed, Prakarski, and Obenshain.

[00:58:04] Conferees on the part of the Senate on House Bill 396, is named by the chair of General Laws and Technology, Senator McPike, are Senators Jones, Carol Foy, and Reeves. Comfrey's on the part of the Senate on House Bill 584, as named by the Chair of Education

[00:58:33] and Health, Senator Favola, are Senators Aird, Perry, and Suterlein. House Bill 705, Comfrey's on the part of the Senate, is named by the Chair of Education and Health, Senator Favola, are Senators Perry, Prakarski, and Craig.

[00:58:59] House Bill 1278, Comfrey's on the part of the Senate, is named by the Chair of Education and Health, Senator Favola, are Senators Bukarski, Van Valkenburg, and Head.

[00:59:14] Unfinished Business Senate. Senate Bill 109 has passed the House with a substitute. Senator from Western Fairfax. Thank you, Madam President.

[00:59:30] Good afternoon. I move that we concur with the House substitute in speaking to that. Senator has the floor. This is a bill that required parental notification of safe storage of firearms and prescription drugs and included statistics on gun violence from the cdc the house amendment simply adds that if cdc data is not available or is not being published anymore which was brought up as a concern that in quote-unquote equivalently nationally recognized entity or organization

[01:00:05] could also be used as a reference for that data so i hope we concur the question is shall the senate concur with the house substitute for senate bill 109 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 20, noes 20. Ayes 20, noes 20. The

[01:00:44] chair votes aye. Senate Bill 109 passes. Senate Bill 151 has passed the House with a substitute. Senator from Chesapeake. Thank you, Madam President. Madam President, I ask that the Senate concur with the House substitute and speak into that motion. Senator has the floor. Thank you.

[01:01:06] Madam President, this is about water safety instruction for elementary school students. The substitute removes the deadlines and says instruction only happens when the SOLs are next revised. Ask the Senate to accept this. The question is, shall the Senate concur with the House substitute for Senate Bill 151?

[01:01:28] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[01:01:46] Ayes 40, no zero. Ayes 40, noes 0. The Senate concurs with the House substitute. Senate Bill 181 has passed the House with the substitute. Senator from Norfolk.

[01:02:02] Thank you, Madam President. Madam President, I move that the Senate concur with the House Amendment and speaking to that motion. Senator has the floor. Thank you. The House substitute does a couple of things to enhance the bill. It authorizes localities to recapture a proportional share of the exemption if the property later fails to meet 30% of the affordability requirement.

[01:02:23] It establishes a five-year look-back penalty with interest if the building is sold and the affordability or qualifying requirements are no longer met. And it requires notice to purchasers that the property is subject to exemption conditions.

[01:02:38] These additions strengthen the fiscal accountability and protect the local tax bases while preserving the incentive framework. The House substitute improves enforceability without changing the underlying housing policy. And I respectfully ask that the House substitute be agreed to.

[01:02:58] The question is, shall the Senate concur with the House substitute for Senate Bill 181? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[01:03:17] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. The Senate concurs with the House substitute for Senate Bill 181. Senate Bill 245 has passed the House with amendments.

[01:03:33] Senator from Botetourt. Thank you, Madam President. I move that the Senate concur with the House amendments in explaining. Senator has the floor. Ladies and gentlemen, the Senate, this bill was the one that said that an extracurricular organization could not use social media as the exclusive method for communication.

[01:03:56] amendment that was added on in the house was suggested by the school board uh school superintendents association and just simply says that it clarifies that there are a couple of apps that are specifically designed to utilize uh communication through texting and that they would not be included in this so i would move that we concur with the house amendments the question is shall the senate concur with the house amendment for senate bill 245 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any

[01:04:33] senators desire to change their vote the clerk will close the roll eyes 40 no zero eyes 40 no zero the senate concurs with a house amendment senate bill 308 has passed the house with a substitute senator from western fairfax i move that we concur with the house substitute and speaking to that senator has the floor madam president the house made a good catch in that

[01:05:10] we had mislabeled the secretary of health and human services and given a new uh label or name to the secretary of health and human services so we've got to fix that thank you madam president the question is shall the senate concur with the house substitute for senate bill 308 all in favor of that motion will record their votes aye. Those opposed no. Are the Senators ready to vote? Of all the Senators voted, do any Senators desire to change their

[01:05:46] vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The Senate concurs with the House substitute. Madam President. Senator from Arlington. Good afternoon. Madam President, having voted on the side by which Senate Bill 109 passed. I would ask that we reconsider the vote so members can cast their vote

[01:06:21] accordingly. And Senator that is on page nine. It's on page nine. The question is shall the vote by which the Senate concurred with the House substitute for Senate Bill 109 be reconsidered? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the

[01:06:54] senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The motion is agreed to. Senator from Western Fairfax. Madam President, I again renew my motion to concur with the House substitute and having previously explained it will save us the time. The question is, shall the Senate concur with the House substitute for Senate Bill 109?

[01:07:23] all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 21 nose 19 eyes 21 is 19 the Senate concurs with a house substitute for Senate bill 109 Senate bill 490 has passed the house with a substitute senator from Western Fair

[01:07:58] henryke thank you madam chair madam chair with the recommendation that we reject the house substitute I move the house substitute and speaking to that motion senator has the floor thank you madam chair members the body the house and Senate both have this is the revolving fund to try to build more housing we both have it in our budgets we just do it in different ways and so this just needs to hash out hash itself out through the budget negotiations and hopefully we will have a revolving fund that does a lot of good work for the Commonwealth of Virginia so I renew my motion with the recommendation that it be

[01:08:36] rejected the question is shall the Senate concur with the house substitute for Senate bill 490 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll zero no I 0, noes 40, the Senate does not concur.

[01:09:09] Senate Bill 553 has passed the House with a substitute. The junior senator from Loudoun. Madam President, with the recommendation that the House substitute be rejected, I move that the substitute be agreed to and speaking to that motion. Senator has the floor.

[01:09:24] Thank you, Madam President. The House laid the language from House Bill 496 onto my Senate Bill 553, which while similar topic is different from the original bill which simply required the local water suppliers report the monthly or quarterly consumption of water of data centers on an annual basis to DEQ we're going to have to work this out in conference so with the recommendation that the house substitute be rejected I renew my motion that the substitute we agree to thank you with the recommendation that it be rejected the question is shall the how the Senate

[01:09:59] concur with the House substitute for Senate Bill 553. All in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Aye zero, noes 40. Aye zero, noes 40. The Senate does not concur. Senate Bill 640 has passed the House with substitute. Senator from Washington. Thank you, Madam President. With the recommendation that the House

[01:10:36] substitute be rejected, I move the substitute be agreed to. With the recommendation that it be rejected, Senator, do you want to speak to the motion? If you insist, Madam President, Senate Bill 640 is split into two House companions, so we need to get all three of these bills in conference and get the best bill through. So, the Senate version. It's a great bill and I like

[01:11:08] mine better. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 640? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Aye zero, no's 40. Aye zero, no's 40. The

[01:11:41] Senate does not concur. Senate Bill 685 has passed the House with a substitute. Senator from Western Fairfax. Madam President, with the recommendation that it be rejected, I concur with the House substitute. Would the Senator like to speak to that motion? Oh yes, speaking to that motion, we just have some policy disagreement still on some of the details of this bill and how it should be

[01:12:15] implemented um so it's uh most effective and productive for our kids and our uh parents and just need we just need a little bit extra time we're gonna get there with the recommendation that it be rejected the question is shall the senate concur with the house substitute for senate bill 685. all in favor of

that motion will record their votes aye those opposed no are the senators ready to vote. Of all the senators voted, do any senators desire to change their vote? The clerk

[01:12:47] will close the roll. I zero, knows 40. I zero, knows 40. The Senate does not concur. Senate Bill 788 has passed the house with amendments. The senior senator from Loudoun. Thank you, Madam President.

[01:13:03] Madam President, I move that we accept the amendments and speaking to that motion. Senator has the floor. This bill is back in the same position that it was when it left committee over here um the only thing we uh the only other thing we did in the house was to uh change the date that the online filing system that abc is currently working on is ready to go and we moved that from november to january thank you madam president with the recommendation the question is shall the senate concur with the house amendments to senate bill 788 all in favor of that motion will record their

[01:13:39] votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 1. Ayes 39, noes 1. The senate concurs. Senate bill 820 has passed the house with a substitute. Senator from Roanoke. Thank you madam president. I move that we concur with the house substitute and speaking

[01:14:17] to that briefly senator has the floor thank you madam president both bills make the pilot community builders program permanent it's something that's been successful in roanoke and petersburg both the house version was a little more expansive that has since gone through senate finance and i believe that they are good with that version as well i just got a not of agreement from our chair of senate finance and so with that i hope it will be the pleasure of the body to agree to the more expansive version that we will also be agreeing to with the house

[01:14:56] version i think a little later after it comes out of finance the question is shall the senate concur with the house substitute for senate bill 820. all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 40, no 0. Ayes 40, no 0. The Senate

[01:15:25] concurs. On page 16, Senate Bill 44. Senator from Eastern Fairfax. Madam President, I move with all the Senate bills on the unfinished business. On page 16 through 23, Senate Bill 44 to 648,

[01:16:04] he placed no block to accede to request for committees of conference. Any senator desiring to move bill from the block, please do so after the clerk. I read the number of the bill. The Question is, shall the Senate bills on the unfinished business on pages 16 through 23, Senate Bill 44 through Senate Bill 648, now be placed in the block to accede to the request for committees of conference with the understanding that any senator desiring a bill be removed from the block will do so after the clerk has read the number of the bill. All in favor of that motion will say aye. Those opposed, no. The ayes have it. The motion is agreed to. The bills are now

[01:16:43] before us in the block, the clerk will read the number of the bills. Senate Bill 44, Senate Bill 94, Senate Bill 134, Senate Bill 140, Senate Bill 226, Senate Bill 324, Senate Bill 388, Senate Bill 648. The question is, shall the Senate

[01:17:19] accede to the request for committees of conference for the Senate bills in the block. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[01:17:38] The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The Senate has acceded to the request for the committees of conference. Conferees on the part of the Senate as named by the chair of local government, Senator Aird, or Senators Rome, Aird, Hackworth. Senate Bill 94, Comfries on the part of the Senate is named by the chair of local government, Senator Aird, or Senators Rome, Senevason, and Stanley. Senate Bill 134, Comfries on the part of the Senate is named by the chair

[01:18:17] of education and health, Senator Favola, or Senators Locke, Favola, and Pillian. Senate Bill Bill 140, conferees on the part of the Senate, is named by the Chair of General Laws and Technology, Senator McPike, or Senators McPike, Rome, and Pillian.

[01:18:36] Senate Bill 226, conferees on the part of the Senate, is named by the Chair of General Laws and Technology, or Senators McPike, or Senators Survelle, Bukarski, and Jordan.

[01:18:55] Comfrey's on Senate Bill 324, Comfrey's on the part of the Senate, is named by the Chair of General Laws and Technology, Senator McPike, or Senators McPike, Prakarski, and Craig.

[01:19:19] Senate Bill 388, Comfrey's on the part of the Senate, is named by the Chair of Local Government, Senator Ayred, or Senators McPike, Ayred, and Reeves. Senate Bill 648, Comfrey's on the part of the Senate, is named by the Chair of Local Government, Senator Ayer, or Senators Perry, Senevasin, and Diggs.

[01:19:46] Page 27, uncontested calendar, House bills on third reading.

[01:20:08] Senator from Eastern Fairfax. Madam President, I move all the House bills on third reading on the uncontested calendar on pages 27 through 44. House Bill 716 to 1463 be advanced their final passage in the block. After the adoption of any amendments thereto, any senator desiring to move a bill from the block will do so after the clerk has read the number of the bill.

[01:20:28] The question is, shall the House bills on the uncontested calendar, third reading, pages 27 through 44, House Bill 716 through House Bill 1463, be placed upon their final passage in a block after the adoption of any amendments thereto, with the understanding that any senator desiring a bill be removed from the block will do so after the clerk has read, the number of the bill all in favor of that motion will say aye those opposed no the ayes have it the motion is agreed to the bills are now before us in the block the clerk will read the number of

[01:21:06] the bills house bill 716 reported from the committee on finance and appropriations house bill 796 reported from the committee on finance and appropriations with the substitute senator senior senator from Prince William move the substitute be adopted the question is shall the substitute from the Committee on Finance and Appropriations be agreed to all in favor of the motion will say aye those opposed no the eyes have it the substitute is agreed to House bill 1233 reported from the

[01:21:43] Committee for Courts of Justice with the substitute and from the Committee on Finance and Appropriations senator from Eastern Fairfax senator senior senator from Prince William. Madam President, I move the substitute be agreed to. The question is, shall the substitute from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 169, reported

[01:22:16] from the Committee on Finance and Appropriations. House Bill 177, reported from the Committee on Local Government with Amendments. The Senator from Eastern Henrico. Thank you,

Madam President. I move the committee amends be agreed to the question is shall the amendments from the committee on local government be agreed to all in favor of the motion will say aye those opposed no the ayes have it the amendments are agreed to has bill 184 reported from the committee on finance and appropriations

[01:22:55] with the substitute senator from eastern fairfax um i move the committee substitute the question is shall the substitute from the committee on finance and appropriations be agreed to all in favor of that motion will say aye those opposed no the ayes have it the substitute is agreed to as bill 309 reported from the committee for courts of justice with amendments senator from eastern fairfax the question is shall the amendments from the committee for courts of justice be agreed to all in favor of

[01:23:33] that motion will say aye those opposed no the ayes have it the amendments are agreed to has bill 404 Reported from the Committee on Finance and Appropriations. House Bill 433, reported from the Committee on Finance and Appropriations with a substitute.

[01:23:52] The Senator from Arlington. Thank you, Madam President. Madam President, I move that the substitute be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[01:24:10] House Bill 443, reported from the Committee on Finance and Appropriations with the substitute. Senator from Eastern Fairfax. Sorry, Madam President, I would move the committee substitute from the Committee on Finance and Appropriations.

[01:24:30] The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 488, reported from the Committee on Finance and Appropriations.

[01:24:47] bill 515 reported from the committee on general laws and technology with amendment and from the committee on finance and appropriations the senior senator from Prince William thank you madam president move the amendments be agreed to the question is shall the amendment from the committee on general laws and technology be agreed to all in favor of that motion will say aye those opposed no the ayes have it the amendment is agreed to has bill 580 reported from the Committee on Finance and Appropriations. House Bill 648

[01:25:23] reported from the Committee for Courts of Justice. House Bill 756 reported from the Committee for Courts of Justice with an amendment. Senator from Eastern Fairfax. Move the committee amendment. The question is, shall the amendment from the Committee for Courts of Justice be agreed to? All in favor of the motion will say aye. Those opposed, no. The ayes have it. The amendment is agreed to.

[01:25:49] House bill 764 reported from the Committee on Local Government. House bill 772 reported from the Committee on Finance and Appropriations. House bill 787 reported from the Committee on Local Government with amendment. Senator from Eastern Henrico. Thank you Madam President. I move the committee amendment.

[01:26:11] The question is, shall the amendment from the Committee on Local Government be agreed to? All in favor of that motion will say aye. Those opposed, no. The one I has it the committee amendment is agreed to as bill 794 reported from the Committee on Finance and Appropriations House bill 798 reported from the Committee on Finance and Appropriations House bill 854 reported from the Committee on

Finance and Appropriations with a substitute the senator from Portsmouth thank you madam president not a president I move that

[01:26:48] committee said to be agreed to the question is shall the substitute from committee on finance and appropriations be agreed to all in favor of the motion will say aye those opposed no the eyes have it the substitute is agreed to has bill 861 reported from the committee on rehabilitation and social services with amendments and from the committee on finance and appropriations senator from Western Henrico madam president I move the committee amendments the question is shall the amendments from the committee on rehabilitation and social services be agreed to. All in favor of the motion will say aye. Aye. Those opposed, no. The ayes have it.

[01:27:25] The amendments are agreed to. House Bill 862 reported from the Committee on Finance and Appropriations with a substitute. Senator from Eastern Fairfax. Thank you, Madam President. I move the substitute from the Committee on Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of the motion will say aye. Those opposed no. The ayes have it. The substitute is agreed to. House Bill 876 reported for the Committee on Local Government. House Bill 954 reported from the

[01:28:02] Committee on Finance and Appropriations with the substitute. Senator from Portsmouth. Thank you Madam President. Madam President I move the committee substitute be agreed to. The question is shall the substitute from the Committee on Finance and Appropriations be agreed to. All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House bill 1063 reported from the Committee on Education and Health with the substitute and from the Committee on Finance and Appropriations. Senator from Arlington. Thank you, Madam President. Madam President, I move that the substitute be agreed to. The question is, shall the substitute from the Committee on Education and Health be agreed to? All

[01:28:40] in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 1149, reported from the Committee on Local Government. House Bill 1150, reported from the Committee for Courts of Justice with amendments. Senator from Eastern Fairfax. The question is, shall the amendments from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The amendments are agreed to. House Bill 1153, reported from the Committee on

[01:29:17] Finance and Appropriations. House Bill 1221 reported from the Committee on Finance and Appropriations with the substitute. Senator from Portsmouth. Thank you, Madam President. Madam President, I move that the committee substitute be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 1298 reported from the Committee for Courts of Justice with the substitute and from the Committee on Finance and Appropriations. Senator from Eastern

[01:29:56] Fairfax. Madam President, move the committee substitute. The question is, shall the substitute from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. As bill 1316 reported from the Committee on Local government as bill 1327 reported from the committee for courts of justice as bill 1463 reported from the committee on local government the question is

[01:30:31] shall the house bills in the block pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 40, no zero. Ayes 40, no zero. The bills in the block pass. Regular calendar. House

[01:31:01] bills on first third reading. House bill 30. A bill relating to providing revenue for the two years ending respectively on the 30th day of June 2027 and the 30th day of June 2028. Reported from the committee on finance and appropriations with senate amendments substituted for house amendments.

[01:31:26] the senator from portsmouth thank you madam president majority leader telling me to pbi madam president madam president i move that the committee amendment be agreed to and speaking to that senator has the floor thank you madam president madam president that provides for all appropriations of the budget submitted by the governor of virginia in accordance with the provisions of subsection 2.1-1509 of the code of virginia and provides a portion of revenues

[01:32:04] for the two years ending respectively on the 30th day of june 2027 and the 30th day of june 2028 the question is shall shall the senate amendments substituted for the house amendments be agreed to all in favor of that motion will say aye those opposed no the ayes have it the

[01:32:42] amendments are agreed to senator from portsmouth thank you madam president madam president i move that hb30 pass the question is shall hb30 pass senator from prince william just a note for the journal all previous abstentions are under rule 36 are also being recorded for this one as well that is correct senator thank you the question is shall house bill 30 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the

[01:33:21] senators voted do any senators desire to change their vote the clerk will close the roll eyes 24 No, 16. Ayes, 24. No, 16. HB 30 passes. House Bill 145, a bill relating to Fantasy Contest Act Regulation and Taxation reported from the Committee on Finance and Appropriations with a substitute. The Senator from, Senior Senator from Prince William. Thank you, Madam President. Move the substitute be

[01:33:59] adopted. The question is, shall the substitute from the Committee on Finance and appropriations be agreed to all in favor of that motion we'll say aye those opposed no the eyes have it the substitute is agreed to senator from Prince William thank you madam president move the bill passed and speaking to the motion senator has the floor with the substitute is now identical to senator Eben the former senator from Alexandria's Senate bill 129 and is now in the form of a study around the taxation options of person to

[01:34:34] person fantasy contests and move the bill's passage. The question is, shall House Bill 145 pass? All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 27,

[01:35:04] Ayes 27, noes 13. House bill 145 passes. House bill 161, a bill relating to Virginia Lottery, casinos, internet gambling, authorization penalties reported from the Committee on Finance and Appropriations with the substitute. Senator, Senator from Hampton. Thank you Madam President. I move that the substitute be agreed to.

[01:35:35] The question is, shall the substitute from the Committee on Finance and appropriations be agreed to all in favor of that motion will say aye those opposed no the eyes have it the substitute is agreed

to senator from Hampton madam president I moved it HB 161 pass and speaking to that senator has the floor madam president this is the I gaming legislation and both Both versions of my iGaming and HB 161 provide oversight and accountability for online casino

[01:36:11] gaming that is already occurring in Virginia today with a legal offshore platform and through products offered by Virginia's iLottery. And this bill conforms HB 161 to SB 118 and what is added is a reenactment clause.

[01:36:29] And with that explanation, Madam President, I move the HB 161 pass. The Senator from Franklin County. Thank you, Madam President. Speaking against House Bill 161. Senator has the floor. Thank you, Madam President. Members of the body, this iGaming, and I've been reading a lot about it, and I started out in this body, of course, being against all gambling.

[01:36:52] It was against casinos. It was against everything. But we lost that battle. But remember what it started out to be, that it was going to rehabilitate the most needy areas of Southside and Southwest Virginia and Portsmouth. Now it keeps growing, now it's Northern Virginia.

[01:37:08] So the original reason of having gaming and gambling has now been expanded and expanded and expanded regionally. And now what we have is that expansion I talked about the first time I stood up against this bill respectfully to the patron. That what we are doing is opening a door that will never be closed.

[01:37:26] And the people that would be most affected will be our children. I was here when SB 118 passed 19 to 17. I voted no. Now we've got this bill that's crossed over. It's the same bill. And the evidence against iGaming has only grown stronger.

[01:37:45] This is what I've researched and found out, so I want to share it with you. The recent Connecticut State report found that 71% of iGaming revenue comes from 7% of users, all classified as addicted or at risk.

[01:38:03] For every single one of those individuals, six people around them suffer the consequences. That is not entertainment, ladies and gentlemen. That is a business model built on human dependency. New Jersey did a report. They incur $350 million a year in social costs from iGaming.

[01:38:22] That includes treatment, emergency services, bankruptcy, family court intervention. The states with the most mature markets have problem gambling rates that are three times the national average researchers say that these products are 10 times more addictive than the slot machine at a physical casino the claim that legalization curbs the illegal marketplace is just not correct pennsylvania's illegal gambling participation grew from six to ten percent in one year after legalization of i-gaming legalization feeds the

[01:39:00] black market by normalizing the behavior and former united assistant u.s attorney michael fagan 25 years prosecuting financial crimes said that online gaming online gambling cannot be effectively regulated and calls the industry's assurances quote half-truths exaggerations wishful thinking or flat-out falsehoods end quote a recovering addict named rob testify here that he started

[01:39:32] gambling as a minor eight hours a day six years using vpns and parents accounts we talk about how we can keep our teenagers our underage users from from using i gaming but they are smart with the phone and they know how to get around it a teenager separately described how to get around it described

how friends using generative ai digitally age their photographs and and create fake ids to bait to beat the facial recognition age verification systems high school students defeating every

[01:40:06] safeguard in this bill with free tools on their phone 59 of boys who encountered gambling content online didn't seek it out. Algorithms pushed it into their feeds and onto their phones.

[01:40:23] The children aren't looking for gambling. Gambling is looking for them. HB 161 creates a two-hold harmless funds and requires applicants to submit a, quote, plan for the mitigation of job loss, end quote. I mean, that's three admissions of harm written into the statute alone. The reenactment clause in section six admits the bill isn't even ready to take effect. If it needs a second look, then it doesn't need its first endorsement here today. Let me remind you of

[01:40:56] what I just said in closing. 71% from 7% all addicted. $350 million in annual social cost. Problem gambling rates tripled. The illegal market growing. Children using AI to bypass age gates. Federal prosecutor who says it can't be policed. And a bill that confesses its own harm three times. The evidence against iGaming has only increased and gotten worse.

[01:41:27] I urge every member to look at these numbers that I've just given you with fresh eyes. Vote no on HB 161. Ladies and gentlemen, Virginia families, workers, and the children deserve better than this bill. Thank you, Madam President. The Senator from Eastern Fairfax.

[01:41:45] Hey, Madam President, speaking to the bill. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, the Senate, you know, the Internet is a thing, and it's going to be here for a while, and the Internet's brought us a lot of things, and we've been having to deal with that the 17 years I've been here.

[01:42:02] A few years ago, we dealt with online loans. These internet loans are made all over the place. I think the center from Hampton also had a bill about that along with the senior center from the city of Fairfax, I'm sorry, the city of Richmond, when we reined in these internet loans.

[01:42:19] I just did a quick Google search. What the internet tells me is that right now there are 4,792 global casinos and online gambling businesses out there. They're out there. They're going to exist. People are going to use them.

[01:42:34] From my perspective, as long as when there's stuff out there and there's stuff happening like that, whether it's this, people, or cannabis, the best way for us to deal with it is to license it, regulate it, and tax it.

[01:42:51] That way we have control over it instead of having the wild west of the internet decide what to do. So, Madam President, I think this is an excellent bill that will actually do some good to deal with the problems that the Senator from Franklin County has identified.

[01:43:10] And I also just note for everybody that this is not the final vote you're going to take on this bill. As the Senator from Hampton pointed out, this bill has a reenactment clause. So you're going to see this bill, if it's going to pass, you're going to see it back again. And at that point, you'll be able to make the decision whether you want to vote for it or not.

[01:43:26] And I would encourage everybody, vote for the bill, keep this conversation going, wait to see the final bill before you decide whether you like it or not. This is something we definitely need to look at to

get this industry under control and to get us some more revenue. The question is, "Shall House Bill 161 pass?"

[01:43:51] All in favor of that motion will record their votes, "I." Those opposed, "No." Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[01:44:07] The clerk will close the roll. Ayes 21, noes 17. Ayes 21, noes 17. House Bill 161 passes. House Bill 400. A bill to amend and reenact, a bill relating to motion picture production tax credit sunset.

[01:44:34] It's a floor substitute. The Senator from Washington. Thank you. Thank you, Madam President. I move the reading of the floor substitute be waived. The question is, shall the reading of the floor substitute be waived?

[01:44:50] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The reading is waived. senator from Washington. I now move that the substitute be agreed to. And speaking to the motion? And speaking to the motion. The substitute aligns the sunset date of the two bills, so they're identical to my original Senate Bill 612. Why am I answering questions if he's not standing up and asking him? Anyway. The senator will rise if the senator from Lynchburg has a

[01:45:25] question to ask. No, no, no, no. The question is, shall the amendment be agreed to? All in favor of that motion, we'll say aye. Aye. Those opposed, no. The floor substitute is agreed to. Thank you, Madam President. Senator from Washington. I now move the bill pass, and speaking of that. Senator has the floor. As substitute, the House Bill 400 is identical to Senate Bill 612, and I hope the

[01:45:58] bill now pass. The question is, shall House Bill 400 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 25, noes 15. Ayes 25,

[01:46:28] No's 15. House Bill 400 passes. Madam President. Senator from Roanoke. Having voted on the prevailing side by which we just passed House Bill 400, can we have that reconsidered? The question is, the Senate will be in order. The question is, shall the vote by which House Bill 400

[01:47:02] passed be reconsidered? All in favor of that motion will record their votes I. Those opposed No. Are the Senators ready to vote? Have all the Senators voted? Do any Senators wish to change their vote? The clerk will close the roll. Ayes 40, No, 0. Ayes 40, No, 0. The motion is agreed to Senator from Washington. As previously described, I renew my motion, the bill pass. The question is, shall House Bill 400 pass?

[01:47:35] All in favor of that motion will record their votes. Aye. Those opposed, No. Are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the role eyes 24 no 16 eyes 24 no 16 house bill 400 passes house bill 642 a bill relating to cannabis control retail market penalties reported from the committee on rehabilitation and social services with a substitute and from the committee on

[01:48:15] finance excuse me and from the committee on finance and appropriations senator from Eastern Henrique thank you madam president I'd like to move the rehab substitute and speaking to that motion senator has the floor thank you madam president this substitute conforms the house bill to our Senate bill and it also takes five additional actions we're adding a little bit more in here amending the micro business location language aligning the medical cannabis testing

[01:48:49] standards and also requiring the square footage to be in alignment regarding the canopy for pharmaceutical processors also adding some restrictions around dual use a installment of payments for the pharmaceutical processors fee for license and also just clarifying some early license access language the question is shall the substitute from the Committee on Rehabilitation and Social Services be agreed to all in favor of the motion will say aye those

[01:49:26] opposed no the ayes have it the substitute is agreed to Senator from Eastern Henrico thank you madam president I move passage of the bill the question is shall House bill 642 pass all in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close

[01:49:57] the roll. Ayes 21, noes 19. Ayes 21, noes 19. House bill 642 passes. House bill 665, a bill relating to financial institutions and services, virtual currency kiosk operations, license required penalty. Reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations. The senator from Charlottesville. The senator from

[01:50:30] Charlottesville. I apologize ma'am the the gentleman from King George was um occupying my time. The chair observed the senator from King George.

[01:50:49] Madam President I move the committee substitute be agreed to. The question is shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion we'll say aye those opposed no the ayes have it the substitute is agreed to senator from charlottesville madam president i once again thank the senior senator from virginia beach for allowing me to to address this matter this bill is identical to a bill that passed this the senate sent from the um gentleman or the senator from central fairfax and i would

[01:51:23] move that we pass the bill the question is shall house bill 665 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero house bill 665 passes has bill 1272 relating to regulation of electronic gaming devices penalties reported from the committee on general laws and technology with the substitute

[01:52:02] and from the committee on finance and appropriations the junior senator from virginia beach thank you madam president i move the substitute be agreed to the question is shall the substitute from the committee on general laws and technology be agreed to all in favor of that motion we'll say aye those opposed no the ayes have it the substitute is agreed to senator from virginia Thank you, Madam President. This bill, HB 1272, conforms to my Senate bill dealing with electronic gaming, also known as skill games, and we'll probably go to conference to make

[01:52:36] sure we get some other things right, correct in the bill. With that, I move the bill pass. The question is, shall House Bill 1272 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted do any senators desire to change their vote? The clerk will close the roll.

[01:53:03] Ayes 26, noes 14. Ayes 26, noes 14. Does the senator from Chesapeake wish to speak? House bill 1320, a bill relating to unemployment benefits increase weekly benefit amounts, reported from the Committee on Finance and Appropriations.

[01:53:27] Senator from Charlottesville. Senator, I move that the bill passed. I'd like to speak to that brief. Senator has the floor. Madam President, this bill raises the individual's weekly benefit under the Unemployment Compensation Act to $48 above what it is right now.

[01:53:45] It's identical to Senate Bill 759 from the former senator from Alexandria and the bill that we've already passed. The senator from Hanover. Thank you, Madam President. I rise to speak to the bill. Senator has the floor.

[01:54:00] Madam President, when this bill came through the Senate initially, I think many of us voted for it. But then as time went on during session, we learned some new facts. Madam President, one of the new facts was that the Unemployment Trust Fund solvency has reduced from 57% in 2024 to 53% currently. Madam President, that's important because if the Unemployment Trust Fund reaches 50% of solvency, then it triggers an action. And Madam President,

[01:54:37] that action is a tax on every employee through their employer. Madam President, it is anticipated that once that automatic level tax is reached, that it will cost about $75 million to employers in Virginia. So Madam President, I did, my office has been fairly diligent about requesting if this bill will trigger that tax and the information from the administration is they cannot guarantee

[01:55:12] us that it will not trigger the tax so madam president the reason i have changed my vote and i'm asking my colleagues not to support this is because of the triggering of that tax which will cost businesses almost 75 million dollars to repopulate the fund the senator from charlottesville Madam President, I'd like to speak to the bill.

[01:55:44] Senator has the floor. Madam President, none of us can guarantee what tomorrow will bring. We don't know what country we will be invading next week. The gentleman is correct. The former senator from Alexandria's bill passed 40 to nothing.

[01:56:02] We have an obligation to the people of the Commonwealth of Virginia. I don't think this rate has been raised since 2008. I think this is a reasonable bill, and I hope you will vote for it. The question is, shall House Bill 1320 pass?

[01:56:18] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19.

[01:56:36] Ayes 21, noes 19. House Bill 1320 passes. House Bill 55, a bill relating to noise abatement monitoring systems, local authorities, civil penalties. The committee amendment has been adopted by the Senate. The senator from Henrico. Thank you Madam President. May that bill go by for the day? Without objection, House Bill 55 goes by for the day. House Bill

[01:57:11] 301, a bill relating to adult adoptees access to vital records reported from the Committee on Rehabilitation and Social Services. The senator from Western henrico thank you madam president madame president i moved the bill passed and speaking to that motion senator has the floor thank you madam president uh madam president members of the body i explained this bill yesterday but this is about um folks who've been adopted to be able to get their birth certificate upon request uh if it has been sealed if um the uh adopted parents had

[01:57:48] amended got an amended birth certificate when they were a kid this is a pretty limited scope and deals with a pretty limited situation but i would hope that we would pass the bill the question is senator from isle of wight thank you madam president speaking of the bill senator has the floor um i know we briefly discussed this yesterday and the bill was carried by but i i want to paint maybe a better picture for some folks just uh as we discuss the bill overall as you know adopted person i don't take issue with the majority of this bill the issue i have is when a person is

[01:58:27] adopted say that there was a person in this room or somewhere in this building that decided to put a child up for adoption that was sealed in 18 years it could have been a painful chapter in somebody's life say it was a child a product of rape or sexual assault and that person decided that time to seal that 18 years later of that young person not knowing the the I guess the occurrence of their birth and subsequent actions somebody could knock on their door and have a very powerful and painful moment occurred that they didn't ask for I have no

[01:59:04] problem with this bill if it had redaction of names I think that every adopted person should know what county they're born in what hospital they're born in any identifying information or if there's medical information provided for that person they should have access to that I don't doubt that but in just a couple months if this bill should be signed by the governor and passed There's going to be people from 30, 40 years ago, or if they make a decision now, 18 years from now, that may have someone knock on their door and it could open up painful wounds for people that they didn't ask for.

[01:59:37] This bill is also retroactive. So if anybody in your family or in your past decided to have something sealed, this undoes all of that. And while I agree with the totality of the bill with the exception of redaction, we have to think about what we are doing here and words matter and I think there are people that talk to probably a lot of you both sides of the aisle about this bill but we have to be seriously thoughtful about the legislation that we pass in the impact it will have on the other person adopted people have rights I believe I have those two but so do the people that made very difficult

[02:00:14] decisions to seal that moment thank you madam president senator from Roanoke I rise to speak briefly, Madam President. Senator has the floor. Thank you, Madam President.

[02:00:31] I appreciate everything the Sarah from Isla White shared about her own personal experience on this. I just want to address the suggestion that something is limited in scope. I don't think that we'd suggest something that overturns a law that's existed since right after Roe v. Wade is limited in scope when we're changing it retroactively.

[02:00:56] Choices that were made by women across this commonwealth, that choice is going to be overturned by our actions if this becomes the new law. There will be households across Virginia that will be upturned with new information that was contrary to what a woman made the decision when she chose to give a child for adoption.

[02:01:20] Those will all be overturned. And I think that what the center from Isle of Wight said about providing a redacted birth certificate would be wonderful. But that is not what the effort has been. And I hope we don't do this. We ought not do this. This is going to uproot painful situations across the Commonwealth. And I understand that when you hear from folks right now, the advocates in favor, you're of course going to hear from it. But no one that does not want this and wants it to remain private is going to be able to speak up because

[02:01:55] that in itself undoes with the very thing that they tried to do several years ago because of often painful chapters like the senator from the Isle of Wight shared. Thank you, Madam President. Senator from Norfolk.

[02:02:11] Thank you, Madam President. Speaking to the bill. Senator has the floor. Thank you, Madam President. I said this in caucus and I'll say it again. I really don't know why this bill has got me so stirred up because I wasn't adopted and maybe because I grew up knowing who both my parents were, where I was born, what time and all of those things.

[02:02:32] But this bill is limited to a small group of people whose adopted parent, not the birth parent, requested what I'm gonna call a substitute birth certificate.

[02:02:47] I know someone personally that that happened to. They were put up for adoption. They were adopted by actually their grandparents, and their grandparents had a substitute birth certificate, requested a substituted birth certificate.

[02:03:07] That then sealed the original birth certificate. And so we're not talking about all adopted children because adopted children are able to get their original birth certificates to find out who they are, who they were when they came into the world, when they came into the world, where they came into the world.

[02:03:31] Adopted children are able to do that. It's a small group of individuals where the adopted parents requested, not the birth mother, but the adopted parents requested the birth certificates to be revised for various reasons.

[02:03:48] 20, 30 years ago, adoption was a stigma. Children were teased and made fun of, and parents did everything in their power to ensure that their children didn't have to go through that. Nobody is saying that a birth certificate is gonna cause someone to show up at a woman's door and say, "Hey, I'm your kid."

[02:04:10] They can do that now through any of the DNA profiles, ID 21, whatever they are. People can find their heritage now with DNA profiling. But this is giving every adopted child equal access to their birth certificate that shows when they came into the world, when they became a human being, and the circumstances surrounding that.

[02:04:38] and that is just something that every adult should be able to do thank you madam president senator from isle of white thank you madam president i just want to briefly respond and speak to the bill senator has the floor thank you madam president as i'm reading actually the lines of the bill it's not as narrow as the discussion previously is and i will read this very clearly this is for anyone before you would have to petition a court of the commonwealth now any adult adoptee can request a sealed birth certificate just by going to the state

[02:05:15] registrar paying the fee and being able to get that copy so anything that was previously sealed it is not just for the adoptive parents it's for any adult adoptee once they turn 18 years of age can make this recommendation and and maybe the senator from Norfolk there was a substitute and I think that what she's saying I believe the original bill did do and the substitute changed this quite a bit. So I just wanted to share that with the body. Thank you, Madam President.

[02:05:46] Senior Senator from Prince William. Thank you, Madam President. Speaking to the bill. Senator has the floor. I appreciate the discussions around this, the topic, and I haven't spoken to it really

before, but, you know, I wouldn't have met my oldest brother, who I didn't know existed, and I didn't know existed, you know, until things like, so all sorts of databases that are out there, And maybe with this in place, I'd have met him 20 years prior and a lot earlier.

[02:06:17] I love my oldest brother. I didn't know him growing up. He was adopted. But I am sure glad he's in my life and getting to know my nieces and nephews that I didn't know when they were born. But despite some maybe trepidation, there's also a lot of positivity of connecting with people.

[02:06:43] But fundamentally, what we're also talking about, and think about it, we're talking about holding Virginians and folks who live here and grew up here of a government withholding basic information about who they are and that's a pretty big government action of holding the core information about where you are in the universe and so many kids that are adopted or various forms in foster care different things they often have that question as a core of what's going on

[02:07:20] and why am I here and where I should be in the world and so many of those things things right now are held by the government. To me, that's fundamentally wrong. Let's flip the script here and talk about an adult, here as a Virginian, trying to seek information about them.

[02:07:40] And we're saying the government, yes, you can go ahead and withhold some of the most core basic information as to who you are as a person. And I hope we pass this because it's meaningful to people's lives who seek answers that they've all often woken, laid up night, wondering, wondering about who, where, what medical history, other things that are important to them in their future that they could benefit from. So while I understand the trepidation, there's also a lot of positivity and the fundamentals that the government shouldn't hold the most basic information

[02:08:19] about you. Thank you, Madam President. Senator from Isle of Wight, this will be your third time speaking to the bill. Thank you, Madam President. Thank you for my last and final time. If no one wishes to speak, I just would like to issue my final thought on this, and I really appreciate the words. Senator has the floor. Thank you, Madam President. I really do appreciate the words from the Senator, from Prince William, but I also am not disagreeing with you on the fact that somebody should know and should have access to that information with the exception of the

[02:08:55] redaction of the names. I have my original birth certificate with redaction of names. I know as much identifying information that was provided at birth I know what county I was born in I know what hospital I was born in I know the age of my mother at birth I have all of that information but what I did not receive is their original names because there were decisions that were made at a time that allowed me to be in this chamber today and I have all of that information I have no issue with us answering those questions for those that are adopted to have access to that information and they should have that. But at the end of the day not having the

[02:09:33] redaction of the names, which is what this comes down to, is that we are taking away someone else's rights that made a decision 18 years ago, 30 years ago, 40 years ago, away from a person that made a decision at that time retroactively. I would wholeheartedly support this bill if we had redaction of those names.

[02:09:57] thank you madam president the senator from northern Fairfax thank you madam president I'm speaking to the bill senator has the floor thank you madam president I hadn't planned to speak but I'm hearing the senior senator from Prince William I I just wanted to bring to mind if you look at me and my

daughter Sophie Claire you can tell in a second that she's my kid because we look so alike I want to tell you about one of my best friends who was adopted she is also

[02:10:28] in her late 40s and someone found her through 23andMe, a cousin, not the birth parent, and through that she learned the name and where she had come from. But then somebody found the yearbook from the birth parents high school and when she opened it and saw the picture she saw herself for the very first time. And And while she has a relationship now with her that is perfectly cordial and lovely,

[02:11:09] knowing where she came from and having that visual confirmation has been so meaningful to her. We always, as individuals, have the ability to say no thank you if somebody calls and asks. So we do have some agency here.

[02:11:27] And I think that for all of the adult children who are seeking to find out who they are, that we should pass this bill. The question is, shall House Bill 301 pass?

[02:11:44] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:12:04] Ayes 28, noes 12. Ayes 28, noes 12. House Bill 301 passes. House Bill 1, a bill relating to minimum wage. It's reported from the Committee on Finance and Appropriations.

[02:12:21] Senator from Charlottesville. Madam President, I move that the bill passed. I'd like to speak to that. Senator has the floor. Madam President, this bill is identical to Senate Bill 1 that was sponsored by the Senator from Portsmouth that passed this body weeks ago. It raises incrementally the minimum wage to $15 an hour by January 1, 2028.

[02:12:42] And thereafter, it's going to be adjusted to reflect increases in the consumer price index. this bill has been a long time coming. Again I move that it pass. The question is, shall House Bill 1 pass? All in favor of that motion will record their votes aye, those opposed no.

[02:13:01] Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 1 passes.

[02:13:17] House Bill 3, a bill to direct the Department of Housing and Community Development to establish an income-qualified energy efficiency and weatherization task force report reported from the Committee on Finance and Appropriations.

[02:13:39] Senator from Charlottesville. That the bill passed, I'd like to speak to that. Senator has the floor. Madam President, the title of this bill explains it, and this bill is nearly identical to Senate Bill 5. It was introduced by the Senator from Hampton and passed from this body unanimously weeks ago.

[02:14:00] But I do want to explain one difference between this bill and the Senate bill. And you will not believe this. The difference in this bill and the bill that got out of the Senate on line 4A was N.

[02:14:17] And we missed it. We missed it. all of you and me we missed it nevertheless it's corrected now and i hope that we will pass this bill the question is shall house bill 3 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[02:14:52] desire to change their vote. The clerk will close the roll. Ayes 38, noes 2. Ayes 38, noes 2. House Bill 3 passes. House Bill 5, a bill relating to employment, paid sick leave, civil penalties. Reported from the Committee on Commerce and Labor with a substitute. Senator from Charlottesville. Move that the committee substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor

[02:15:31] of the motion will say aye, those opposed no, the ayes have it, the substitute is agreed to. Senator from Charlottesville. Madam President, I move the bill passed and I'm speaking to that. Senator has the floor. This bill is with the with the substitutes now conformed to Senate bill 199 that was introduced by the senator from Arlington that passed this body several weeks ago 21 to 19 it expands provisions that relate to um one hour of sick basically um provides for one hour sick leave for every 30 hours worked i hope that you'll pass the bill the question is shall

[02:16:11] house bill 5 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 5 passes. House Bill 17, a bill relating to fines, costs, forfeitures, penalties, and restitution, collection fees, assessment against incarcerated

[02:16:50] defendant, deferred payment agreement, reported from the Committee for Courts of Justice with a substitute, and from the Committee on Finance and appropriations with the substitute. Senator from Eastern Fairfax. Thank you Madam President, I move the committee substitute. Senator, I believe we need to reject the substitute from the Committee for Courts of Justice. Okay, with recognition to be rejected, I move that we accept the substitute from the Committee of Courts of Justice. With the recommendation that it be rejected, the question is, shall the substitute from the Committee for Courts of Justice be

[02:17:29] agree to. All in favor of the motion will say aye. Those opposed, no. The noes have it. The substitute is rejected. Senator from Fairfax. I move the committee substitute from the committee on finance and appropriations. The question is, shall the substitute from the committee on finance and appropriations be agreed to? All in favor of that motion will say aye. Those opposed, no.

[02:17:53] The ayes have it. The substitute is agreed to. Senator from Fairfax. Move the bill pass and Speaking of the motion. Senator has the floor. Take men and present. Ladies and gentlemen, the Senate, this bill is very similar to Senate Bill 185 by the Senate from Norfolk, which passed this chamber 22 to 18.

[02:18:13] The bill basically changes the period of limitation for the collection of court fines and costs from 60 years for the day of defense for delinquency to, and for circuit court, 30 years for general district court to 10 years for the date of judgment, whether it's imposed by either a circuit court or a district court.

[02:18:31] and the bill provides that upon the expiration of the limitations period no action can be brought to collect the debt uh this bill was a consolidation of i think three different bills in the senate we did the same thing with the three bills from the house and uh again this passed here earlier 22 17. hope we pass it again the question is shall house bill 17 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[02:19:10] the roll as 21 nose 19 eyes 21 nose 19 house bill 17 passes has bill 61 a bill relating to the department of small business and supplier diversity small swam business procurement enhancement

program established reported from the committee on general laws and technology with a substitute and from the committee on finance and appropriations with the substitute the senator from senior senator from Prince William thank you mad president move the substitute be

[02:19:49] agreed to senator I believe we have to reject with the recommendation that be rejected the question is with the recommendation that it be rejected the question is shall the substitute from the committee on general laws and technology be agreed to all in favor of that motion will say aye those opposed Opposed, no.

[02:20:09] No. The no's have it. The substitute is rejected. Senator from Prince William. I move the substitute from the Finance and Appropriations Committee be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye.

[02:20:25] Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Prince William. Thank you, Madam President. I move the bill to pass. And speaking to the motion. Senator has the floor. Thank you, Madam President. This is the SWAM Business Procurement Enhancement Program.

[02:20:40] Many of you have seen this over the years, it's been vetoed in various fashions, but it is part of sort of codifying in previous executive orders by prior governors and sets out performance metrics and goals to increase. I think the good thing is that the Chamber and the Commonwealth now has data.

[02:20:56] There's a disparity study that was done, it was published just about a week and a half ago, two weeks ago, and showing underutilization of SWAM small businesses across Virginia. So we know that there's opportunities out there and I think the delegate is seeking to fill those gaps where there's opportunities for small businesses that are not being included in procurements.

[02:21:17] And so this seeks out to correct that wrong. So I move the bill's passage. The question is, shall House Bill 61 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote?

[02:21:32] Have all the senators voted? Do any senators desire to change their vote? clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 61 passes. House Bill 141, a bill relating to Virginia Passenger Rail Authority exemptions reported from the Committee on Finance and Appropriations. Senator from Henrico. Thank you, Madam President. Madam President, I move the bill pass. And speaking to that. Senator has the floor. Madam President, this bill

[02:22:11] Exempts the passenger rail authority from Virginia information technologies act and relies on technology requirements And it's enabled enabling legislation and also exempts them from fees For remote access to land records in a circuit court and fees rent and royalties related to Submerged land And I renew my motion that the bill pass.

[02:22:40] The question is, shall House Bill 141 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:22:59] Ayes 38, noes 2. Ayes 38, noes 2. House Bill 141 passes. House Bill 164, a bill relating to housing for local employees grants for home ownership reported from the committee on local government the senator from eastern henrico thank you madam president oh lord sorry um thank you madam president i

move passage of the bill and i would like to speak to that motion senator has the floor um madam president this is identical to senate bill 328 which is senator perry's bill and it passed this

[02:23:33] body 25 uh 14 1 ultimately we are eliminating the maximum grant amount for these grants for homeownership being offered by localities right now current law caps it at 21 to 25,000 for individual grants and a lifetime cumulative amount for 25,000 per employee so again we are eliminating that cap and I'd like to see this move to for final passage the question is shall house bill 164 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to to change their vote.

[02:24:15] The clerk will close the roll. Ayes 25, Nose 15. Ayes 25, Nose 15. House Bill 164 passes. House Bill 181, a bill relating to affordable dwelling unit program, City of Roanoke, reported from the Committee on Local Government.

[02:24:34] Senator from Eastern Henrico. Thank you, Madam President. I move final passage, and I would like to speak to that motion. Senator has the floor. Thank you, Madam President. House Bill 181 is legislation that is adding City of Roanoke to the list of localities with the authority to provide for an affordable dwelling unit program.

[02:24:54] It passed out of our committee, uncontested, and I hope that we can move it forward from this body. It's a final passage. The question is, shall House Bill 181 pass? All in favor of that motion will record their votes aye.

[02:25:10] Those opposed, no. Are the senators ready to vote? have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero eyes 40 no zero house bill 181 passes house bill 215 a bill relating to voter registration list maintenance third-party data exchanges approval by the state board of elections

[02:25:46] reported from the committee on finance and appropriations the junior senator from virginia Thank you, Madam President. I move the bill to pass. I'm speaking to that motion. Senator has the floor. Thank you, Madam President. HB 215, that's pretty much the Eric bill.

[02:26:01] I was dealing with list maintenance information and passed out of P&E 87 on a party line vote and from the Finance Committee as well on a party line vote as well. With that, I move to pass. The question is, shall House Bill 215 pass?

[02:26:19] All in favor of that motion will record their votes aye. Those opposed, no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll. Ayes 21, Noes 19.

[02:26:36] Ayes 21, Noes 19. House Bill 215 passes. House Bill 218, a bill relating to casino gambling consideration of service permit applications. Reported from the Committee on General Laws and Technology with the substitute and from the Committee on Finance and Appropriations.

[02:26:55] The senior senator from Prince William. Thank you, Madam President. Move the substitute be agreed to. The question is, shall the substitute from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[02:27:11] Senator from Prince William. Thank you, Madam President. Move the bill pass. And speaking to the motion. Senator has the floor. Thank you very much. So this bill sets out the actual sort of application process for those seeking to work in casinos or gaming-related areas to make sure and ensure that the relative background check is only about the last eight years.

[02:27:33] So it does give opportunity for someone who had something 15 or 20 years ago to apply and be reviewed for an applicant. So it doesn't shut the door on people looking for employment, but it does still pertain it down to eight years or less. is the bill man president the question is shall house bill 218 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 37 knows one

[02:28:10] ayes 37 knows one house bill 218 passes house bill 222 223 a bill relating to public defender local finding for positions reported from the committee on finance and appropriations the senator from eastern fairfax uh thank you madam president i move the bill pass and speaking to the motion senator has the floor thank you president this is a pretty simple little bill it just makes clear that localities have the authority to supplement public defender salaries

[02:28:48] uh it was one vote against the committee which was an abstention i think somebody might work for a public defender's office and can't vote. I think this bill is probably okay. I hope we can see it pass. The question is, shall House Bill 223 pass? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40,

[02:29:21] no zero. Ayes 40, no zero. House Bill 223 passes. House Bill 256, a bill relating to comprehensive plan, environmental justice strategy, reported from the Committee on Local Government with a substitute. The senator from Eastern Henrico. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee on Local Government be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from henrica thank you madam president i move final passage in speaking to that

[02:29:58] motion senator has the floor um thank you madam president um house bill 256 has been conformed to senate bill 425 which is the same as senator bagby's legislation which passed out of this body 2119. Ultimately, this is the same legislation requiring that localities include in their comprehensive plan strategy a lens from an environmental justice perspective for their communities. And so again, I hope that we can move this to final passage. The question is, shall House Bill 256 pass? All in favor of that motion will record their votes aye. Those opposed

[02:30:33] no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote the clerk will close the roll eyes 21 nose 19 eyes 21 nose 19 house bill 256 passes ice bill 257 a bill relating to comprehensive plan social determinants of health reported from the committee on local government senator from eastern henrico thank you madam president i move the bill

[02:31:08] pass and speaking to that motion senator has the floor thank you um madam president uh house bill 257 really encourages localities to utilize relevant and available data and research related to the social determinants of health to consider how the localities has adopted its comprehensive plan just to ensure that they are taking proper actions around supporting the public health of their community. So I

hope we can pass the bill. The question is, shall House Bill 257 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to

[02:31:44] vote. Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, Nose 19. Ayes 21, Nose 19. House Bill 257 passes. House Bill 277, a bill relating to zoning, wireless facility modifications, application process. Reported from the Committee on Local Government. Senator from Eastern Henrico. Thank you Madam President. I move passage of the bill and speaking to that motion senator has the floor thank you so much madam president house bill

[02:32:22] 277 requires that cities with populations greater than 20,000 and counties with populations greater than a hundred thousand consider at their next comprehensive review plan legislation that excuse me I'm a plan that adopts their locality strategy to think through fence line communities within the jurisdiction and to reduce policies around health risk so I hope we can move the bill forward question is shall House Bill 277 pass all in favor of that motion will record their votes aye those opposed no are the senators ready

[02:32:59] to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero House Bill 277 passes. House Bill 331, relating to payment of cost when proceedings deferred. Reported from the Committee for Courts of Justice with an amendment and from the Committee on Finance and Appropriations. Senator from Eastern Fairfax. Move the bill passes. Speaking of that motion.

[02:33:35] Senator, we must adopt the amendment. I amended it? Okay. I move the committee amendment. The question is, shall the amendment from the Committee for Courts of Justice be agreed to? all in favor of that motion will say aye aye those opposed no the ayes have it the amendment is agreed to senator from fairfax move the bill passes speaking of that motion senator has the floor amen president i didn't remember any amendment but um we saw this bill last year and it was vetoed by the governor and now it's back what the bill does is it basically says that if you have if you're charged with something and you enter into a deferral prosecution where it's

[02:34:11] deferred for dismissal if you otherwise comply with all the terms of dismissal uh the case the only thing you haven't done is paid your court costs the case still has to be dismissed and the court costs can be taken care of via collections so usually these are like i don't know 60 80 bucks something like that typically um maybe 100 but that's a good bill we passed it last year hope we can pass it again the question is shall house bill 331 pass all in favor of that motion will

[02:34:45] record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 21 nose 19 eyes 21 nose 19 house bill 331 passes has bill 352 a bill relating to local authority affordable housing performance grant programs reported from the committee on local government senator from eastern henrica thank you madam president i move passage of the bill and speaking to that motion senator

[02:35:23] has the floor thank you so much madam president house bill 352 would allow localities to establish an affordable housing performance grant program to award be awarded to qualified applicants it also would bridge create a bridge program that allows affordable housing development from concept up to reality we've seen similar programs like this and the city of Richmond and it's been successful so now we're hoping that we can allow more communities to take advantage of this I hope we can move the bill forward the question is shall House Bill 352 pass all in favor of that motion will record

[02:36:01] their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 25, nos 15. Ayes 25, nos 15. House Bill 352 passes. House Bill 446, a bill relating to Virginia passenger rail authority imminent domain reported from the Committee on Transportation with a substitute and from the Committee for

[02:36:39] Courts of Justice. Senator from Eastern Fairfax. Thank you, Madam President. I move the Committee to substitute. The question is, shall the substitute from the Committee on transportation be agreed to. All in favor of the motion will say aye. Aye. Those opposed, no.

[02:36:55] The ayes have it. The substitute is agreed to. Senator from Fairfax. Thank you, Madam President. I move the bill to pass and speaking to the motion. Senator has the floor. Thank you, Madam President. This bill has to do with Virginia Passenger Rail Authority's Condemnation Authority. Really doesn't affect many people in this district unless your district contains some of the VRE lines or the lines of the VRPA owns but basically all the bill does is aligns the condemnation power of the VPRA with VDOT so basically makes it the same that's all the bill does and hope we get past the bill does good

[02:37:34] things we're expanding passenger rail like crazy in Virginia and this was just a little tool they need to make it easier to do that the question is shall House bill 446 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 37 noes 3. ayes 37 noes 3. house bill 446 passes

[02:38:10] house bill 449 a bill relating to civil actions filed on behalf of multiple persons class actions Visit violations of Virginia Consumer Protection Act award of damages reported from the Committee on Finance and Appropriations Senator from Eastern Fairfax Thank you Madam President. Move the bill passed and speaking to that motion. Senator has the floor. Thank you Madam President. Ladies and gentlemen in the Senate, this bill is identical to legislation we passed earlier of mine, which authorizes Virginia to have class-action lawsuits join

[02:38:49] 48 other states so that we would isolate Mississippi as being the only place in America where you cannot bring a class action lawsuit in state court. Our bill passed already. It should be either sitting on the governor's desk or in an envelope on its way.

[02:39:06] I would hope we could treat this bill similarly and send it on to the governor. The question is, shall House Bill 449 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote?

[02:39:26] The clerk will close the roll. Ayes 22, noes 18. Ayes 22, noes 18. House Bill 449 passes. House Bill 496, a bill relating to zoning, commercial, and industrial facilities water use disclosures.

[02:39:49] Reported from the Committee on Local Government with a substitute. Senator from Eastern Henrico. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee on Local Governments be agreed to? All in favor of that motion will say aye.

[02:40:05] Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Henrico. Thank you, Madam President. I move passage of the bill. And speaking to that- Senator has the floor. Thank you so much, Madam President. House Bill 496 is now identical to Senate Bill 553 by Senator Saracen, and it passed out of this body 25 to 15 as a reminder this legislation would require industrial and commercial

facilities to submit annual water consumption estimates and consideration of water consumption from public resources when making rezoning and special permit decisions and so I'm hopeful we can move this

[02:40:44] legislation forward the question is shall house bill 496 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote. Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 25, Nose 15, House Bill 496 passes. House Bill 520, a bill relating to clerk

[02:41:15] fees, secure remote access to non-confidential court records by certain attorneys. Reported from the Committee on Finance and Appropriations. Senator from Eastern Fairfax. Thank you, Madam President, move the bill to pass and speaking to the motion.

[02:41:34] Senator has the floor. Thank you, Madam President. Ladies and gentlemen, the Senate, this bill is identical to Senate Bill 82 by the Senator from the City of Fairfax, which passed this body 28 to 12. It basically says that these fees that our clerks of court now charge lawyers to get access to their court system, what's called OCRA, don't have to be charged to people who are certified by the Virginia Indian Defense Council to court appointed council worker that's basically what the bill does we've already passed

[02:42:09] it again 28 to 12 I would hope we give the similar treatment the question is shall house bill 520 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 31, noes 9. Ayes 31, noes 9. House Bill 520 passes. House Bill 547, a bill relating to

[02:42:49] private companies providing public transportation services, employee protections, reported from the Committee on Local Government with a substitute and from the Committee on Finance and Appropriations. Senator from Eastern Henrico. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee on Local Government be agreed to all in favor of that motion will say aye those opposed no the ayes have it the substitute is agreed to senator from Henrico thank you madam president I move passage of the legislation and speaking to that motion senator has the floor thank you so much madam president this legislation would

[02:43:27] require worker protections when local governments contract with private companies specifically to maintain equivalent pay and benefits to require the use of their own employees to protect workers during contractor transitions and to protect workers if service returns the public operation with these guardrails in place it makes it clear and understandable what these companies will be required to do and so I'm hoping that we can move the legislation forward the question is shall house bill 547 pass all in favor of that motion will record their votes aye those opposed no are the senators ready

[02:44:02] to vote. Have all the senators voted. Do any senators desire to change their vote. The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 547 passes. House Bill 549, a bill relating to conservation and replacement of trees during development process work group report reported from the Committee on Local Government with a substitute. Senator from

[02:44:39] Eastern Henrico. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee on Local Government be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Henrico. Thank you, Madam President. I move passage of the legislation and speaking to that motion. Senator has the floor. Thank you, Madam President. The substitute conforms House Bill 549 to Senate bill 589 which

passed out of this body on a 24/16 vote and madam president this legislation expands in the substitute specifically expand certain existing local government authority to plan a replace trees on the

[02:45:17] development process by expanding such authority statewide and the parameters around being able to do so so I hope we can move this legislation forward the question is shall House bill 549 pass all in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 24, no 16. Ayes 24, no 16. House bill 549 passes. House bill 594, a bill relating to expedited approval for certain

[02:45:57] affordable housing developments. Reported from the committee on local government with a substitute. Senator from Eastern Henrico. Thank you so much, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee on Local Government be agreed to?

[02:46:12] All in favor of the motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Henrico. Thank you, Madam President. I move passage of the legislation and speaking to that motion. Senator has the floor. Thank you, Madam President. This legislation allows a locality by ordinance to authorize a zoning administrator to use an administrative process to approve rezoning applications for affordable housing developments.

[02:46:36] It is a permissive bill that's just giving localities a tool to help address the zoning challenges that they experienced during this process. And it's particularly helpful for nonprofit and faith-based organizations that own underutilized properties. So I'm hoping that we can move this forward.

[02:46:52] - The question is, "Shall House Bill 594 pass?" All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Of all the senators voted, do any senators desire to change their vote? The clerk will close the roll.

[02:47:12] Ayes 28, noes 12. Ayes 28, noes 12. House Bill 594 passes. House Bill 655, a bill relating to zoning manufactured housing reported from the Committee on Local Government with the substitute.

[02:47:29] Senator from Western Henrico. Thank you, Madam President. Madam President, move the committee substitute. The question is, shall the substitute from the committee on local government be agreed to? All in favor of that motion, we'll say aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[02:47:44] Senator from Henrico. Thank you, Madam President. Madam President, with that substitute, this bill is identical to my Senate bill 346 about manufactured homes and not discriminating against them in zoning, which passed out of this body 38 to two. And so I move that we pass the bill.

[02:48:01] The question is, shall House Bill 655 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:48:19] Ayes 39, noes 1. Ayes 39, noes 1. House Bill 655 passes. Ayes Bill 683, a bill relating to solar interconnection grant program established. report sunset reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations. Senator from Charlottesville. Madam President, I move that the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of the motion

[02:48:54] will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam President, move the bill pass. I'd like to speak to that, please. senator has the floor thank you madam president this is another bill from the sewer it with it with the substitute we just adopted this bill is conformed to Senate bill 659 that was introduced by the senator from Chesapeake that passed this body 30 to 8 it establishes a solar interconnection grant fund a grant fund

[02:49:28] program again I reiterate my motion that it pass the question is shall house bill 683 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 26 nose 14 eyes 26 nose 14 house bill 683 passes house bill 693

[02:50:04] a bill relating to department of workforce development and advancement workforce development program's apprenticeship program reported from the committee on finance and appropriations with a substitute senior senator from Prince William thank you madam president with the substitute from finance and appropriations be agreed to the question is shall the substitute from the committee on finance and appropriations be agreed to all in favor of that motion will say aye those opposed no the eyes have it the substitute is agreed to senator from Prince William thank you madam president move that the bill passes speaking to motion. Senator has the floor. So the bill recognizes the Department of Workforce Development

[02:50:42] and Advancement as the federally and state designated agency responsible for workforce development in the Commonwealth. The bill additionally makes technical changes to reflect the previous transfer of administrative administration of apprenticeship programs from the Department of Labor to the Department of Workforce Development and Advancement and so this is really a follow-up to the omnibus bill around workforce development from several years ago under the previous governor and move its passage. The question is, shall House Bill 693 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any

[02:51:19] senators desire to change their vote? The clerk will close the roll. Ayes 35, noes 5. Ayes 35, noes 5. House Bill 693 passes. House Bill 711, a bill relating to to local regulation of solar facilities special exceptions.

[02:51:45] Reported from the Committee on Local Government. - Senator from Western Henrico. - Thank you, Madam President. Madam President, I move the bill pass in speaking to that. - Senator has the floor. - Thank you, Madam President. Madam President, members of the body, this is the same as my Senate Bill 347, which is the ban the bans and voluntary standards around solar siting that passed out of here 21 to 19.

[02:52:07] And so I move that House Bill 7-11 pass. The question is, shall House Bill 7-11 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted?

[02:52:24] Do any senators desire to change their vote? The clerk will close the roll. Ayes 22, noes 18. Ayes 22, noes 18. House Bill 7-11 passes. House Bill 802, a bill relating to vacant building registration, registered agents.

[02:52:45] Reported from the Committee on Local Government. Senator from Eastern Henrico. Thank you, Madam President. I've moved passage of the legislation in speaking to that motion. Senator has the floor. Thank you, Madam President. House Bill 802 gives localities the authority by ordinance to require

contact information for owners of registered agents of vacant or derelict properties, specifically when a property has been sitting vacant for at least three years and it meets the conditions to be categorized as a derelict building or criminally derelict, then this requirement for registration can be put into effect if the locality adopts that ordinance.

[02:53:25] And so I'm hoping we can move this legislation forward as a way to fight blighted properties here in our Commonwealth. The question is, shall House Bill 802 pass? all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 22 nose 18 eyes 22 nose 18 house bill 802 passes hospital 806 a bill relating to

[02:54:03] industrial development authorities housing reported from the committee on local government Senator from Eastern Henrico, thank you, Madam President. I move final passage and speaking to that motion. Senator has the floor. Thank you, Madam President. House Bill 806 gives economic development authorities the ability to issue bonds to finance affordable housing projects and specifically allowing for them to make that decision regarding single or multifamily residences, basically in order to promote safe and affordable housing options here in the Commonwealth. So I hope we will move the legislation forward.

[02:54:38] The question is, shall House Bill 806 pass? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:54:57] Ayes 27, noes 13. Ayes 27, noes 13. House Bill 806 passes. House Bill 816, a bill relating to zoning by right multifamily development.

[02:55:16] Reports from the committee on local government with a substitute. And there are three floor amendments, two floor amendments. Senator from Western Henrico. Yeah, thank you, Madam President. First, let's move the committee substitute.

[02:55:33] The question is, shall the substitute from the Committee on Local Government be agreed to? All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Henrico. Senator from Arlington.

[02:55:48] Thank you, Madam President. Madam President, I move that we waive the reading of the two substitutes, two line amendments to the substitute. The question is, shall the reading of the two floor amendments be waived all in favor of that motion we'll say aye aye those opposed no the ayes have it the reading is waived senator from Arlington thank you madam president madam president I move that the the two floor amendments be agreed to and speaking to that motion senator has the floor thank you madam president what these floor amendments do is in the statute that

[02:56:28] talks about buy right multifamily residential development and that zoning category the line amendments would just say a developer is entitled to the buy right envelope for housing units so that would be the floor the buy right envelope they they would be entitled to that anything above that buy right envelope the developer would have to go through a review process with the county

[02:57:00] And that's an important distinction because the developer would be gaining additional height above the buy right and additional building envelope. And traditionally, localities negotiate some public benefits when they're giving a benefit such as additional density.

[02:57:19] So they may ask the developer to perhaps build designated affordable units in that additional height density or to provide another public benefit. So that's what the amendment does.

[02:57:34] It just sort of guarantees the buy right building envelope for housing and everything above that you'd have to go through a process. I do hope it is the will of the body to adopt these amendments and I so move. The question is, shall the amendments be agreed to? All in favor of the motion will say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to.

[02:58:06] Madam President, I yield my time to the Senator from Western Henrico. Senator from Western Henrico. Thank you, Madam President. Madam President, I move that House Bill 816 passed and speaking to that motion. Senator has the floor. Thank you, Madam President. Madam President, members of the this is the house's version of my housing near jobs bill and I just want to take a minute to take us through the problem and then what this bill does and so many of you have heard me say the three statistics I think are kind of the most rattling and important we have three of the top 10 metro regions in the

[02:58:42] country for rent increases that's all three of our major metro regions the The average home sales price has increased from 2019 to 2024 by greater than 50% in the far majority of our localities. And we have cities in this country that have permitted more homes than the entire Commonwealth of Virginia.

[02:59:03] And if you look at my locality, my locality, which basically tracks the home average sales price for the state, has gone from $288,000, which is something that working and middle class people can afford to $420,000, which is something that they cannot afford.

[02:59:20] And people feel this. In a survey done this summer, over 80% of Virginians in every region across Virginia said housing is a major pressing issue. Our business groups are asking for more housing because they're afraid that they can't bring their businesses here because they don't have housing for their employees.

[02:59:40] And so housing near jobs is a substantive, in this version, is a substantive yet responsible fix, partial fix, to this problem. This bill has been done in 15 other, a version of this bill has been done in 15 other states, red states like Texas and Montana, purple states like New Hampshire and Maine, blue states like Colorado and Washington.

[03:00:02] And what this bill does, and I'm not going to go through every little bit, I can if you want, but what this bill basically says is in 50% of the commercially zoned territory that is connected to sewer and water, the localities have to allow by-right residential in those parts. They can chalk 50% off from the top. It then puts a bunch of guardrails in the bill, some of which we've already seen around military basis, the environment, historical districts, industrial, things like data centers. It has a one-year delayed enactment and it sunsets after four years, which I think is important. That sunset is very important because it means we get

[03:00:38] to see what happens. And there's a very short time period of experiment. And I think we're going to find that it works and that we like it. But having said that, we have a housing problem. We are pricing our middle and working class folks out of Virginia. Teachers, firefighters, cops, service workers, tradesmen, they can't afford to live where they work. And they are increasingly being priced out of the state. I think that we need to fix that. I think Virginia needs to be a place where everybody can afford to live whether that's home ownership or renting

[03:01:16] I think if you've knocked on any doors in your communities in the last couple years all segments of your community are crying out for housing Your working-class rentals your older folks who want to downsize the folks that got kids stuck in their house So this bill is a substantive and responsible way of solving that problem and I move its passage The question is, shall House Bill 816 pass?

[03:01:42] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[03:02:03] Aye 17, no's 22. Aye 17, no's 22. House Bill 816 does not pass. House Bill 833, a bill relating to land subdivision and Development, Optional Provisions of a Subdivision Ordinance Electric Vehicle Charging Stations Department of Energy Report. Reported from the Committee on Local Government with an amendment. Senator from Eastern Henrico. Thank you Madam President. I move the committee amendment. The question is, shall the

[03:02:42] amendment from the Committee on Local Government be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The amendment is agreed to senator from henrico thank you madam president house bill 33 would allow not require local governments to set minimum standards for ev charging and ev readiness and new building construction and major renovations the current law limits local governments from making new buildings what we would consider ev ready and so charging is most while charging is most affordable at home hb 833 will help more virginians be able to take advantage of these savings and so madam president

[03:03:20] it's my hope that we can move house bill 833 forward the question is shall house bill 833 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 22, noes 18. Ayes 22, noes 18. House Bill 833 passes. House Bill 867, a bill relating to

[03:03:56] Affordable Housing Local Zoning Ordinance Authority, reported from the Committee on Local Government with a substitute. Senator from Eastern Henrico. Thank you so much, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee on Local Government be agreed to all in favor of the motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from henrico thank you madam president house bill 867 with this substitute is now conformed to senate bill 74 which passed out of this body on a 2119 vote

[03:04:33] and madam president the legislation authorizes any locality in the commonwealth to provide for and affordable housing dwelling unit program by amending the zoning ordinance of their locality it does have a delayed effective date of uh july 1 2028 and also a reenactment clause and so i'm hoping we can move this legislation forward the question is shall house bill 867 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote. Have all the Senators voted. Do any Senators desire to change their vote? The

[03:05:11] Clerk will close the roll. Ayes 21, Nose 19. Ayes 21, Nose 19. House Bill 867 passes. House Bill 888. A bill relating to minimum off-street parking requirements in certain areas. Reported from the Committee on Local Government with a substitute. Senator from Eastern Henrico. Thank you Madam President. We are waiting a floor amendment for this so if i could take this by for the day that would be great without

[03:05:38] objection house bill 888 goes by for the day host bill 891 a bill relating to citing of battery energy storage projects commercial solar photo voltaic generation facilities permitted accessory use reported from the committee on local government senator from eastern henrica thank - Thank you, Madam President.

[03:06:09] I move passage of the legislation and speaking to that motion. - Senator has the floor. - Thank you so much, Madam President. House Bill 891 is identical to Senate Bill 443, which passed out of this body on a 2613 vote. Madam President, this legislation permits accessory use in all zoning districts on any parcel of land that is subject to be an approved special exception.

[03:06:35] The bill also prohibits a host locality requiring a special exception or any other local land use approval on such battery energy storage projects and it also clarifies that any battery energy storage projects for which an initial interconnection request has been filed um not prior to july 1 2030. so with this madam president i hope we can move the legislation forward the question is shall house bill 891 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote

[03:07:09] have all the senators voted do any senators desire to change their vote the clerk will close the role ayes 27 nos 11 rule 36 1. ayes 27 nos 11 rule 36 1. house bill 891 passes house bill 915 a bill relating to local taxation extension for federal government shutdown reported from the committee on finance and appropriations the senator from

[03:07:46] Portsmouth thank you madam president madam president I move that the bill passed and speaking to the motion madam president senator from Prince William so this is one of the bills that the delegates put forward that allows for senator for what purpose did you rise to speak to the bill thank you madam

[03:08:23] president senator has the floor so this bill provides for local option to extend based on federal government shutdown the provisions of local taxation and extend that for any of those impacted. Move its passage. Senator from Roanoke, do you wish to speak? The question is, shall House Bill 915 pass?

[03:08:46] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, no, zero. Ayes 39, no, zero house bill 915 passes has bill 925 a bill to amend and reenact two point a bill relating to

[03:09:19] virginia human rights act unlawful discriminatory practices civil action statue of limitations reported from the committee for courts of justice senator from eastern fairfax thank you madam president um i move the house bill 925 pass and speak that motion senator has the floor thank you Madam President, this bill provides that, it basically says that you have to, whenever

[03:09:55] you file an employment discrimination case, you have to file with the state or the EEOC in typically, I think, a little bit less than a year in order to file an action in court. This basically extends the period of time you can file with the state from one year to two years, so you have an extra year to file that administrative case to make it a easier for people to get their employment discrimination claims filed administratively. That's basically what the bill does. I would hope we could pass the bill. The question is, shall House Bill 925 pass? All in favor of that motion

[03:10:31] will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 18.

Ayes 21, noes 18. House Bill 925.

[03:10:53] passes. House bill 942, a bill relating to child abuse and neglect, custody and visitation, possession or consumption of authorized substances. Reported from the Committee for Courts of Justice with the substitute. Senator from Eastern Fairfax. I move the committee substitute. The question is, shall the substitute from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Fairfax. Thank you, Mr. President. I move the bill to pass and speak to the motion.

[03:11:29] Senator has the floor. Thank you, Mr. President. Ladies and gentlemen, the Senate, this bill is similar to a bill I think we considered either last session or the session before, but what it originally sought to do was to basically say that a child could not be considered abused or neglected solely because their parent was using a legal substance, both the prescription, marijuana or alcohol the way the bill was originally written however it it changed the definition of abuse and neglected child throughout the entire code and that made a lot of us

[03:12:08] uncomfortable that it would be that broad and sweeping and so what the committee substitute did was narrowed it down so that it only applies in child custody and visitation cases it does not apply generally in child neglect or abuse situations the things that like child protective services to investigate, etc. So right now, the bill before you only says that if two parents are litigating about child custody or visitation, one parent can't raise an issue about alcohol, marijuana, or prescription drugs. If that's the only thing, if somebody's abusing it, that's fair

[03:12:46] game. If the child's getting access to it, that's fair game. But just if a parent likes to drink a every once in a while that's not fair game that's basically what the bill says as amended by the courts of justice committee in light of some of the recent changes that have come on cannabis law someone's thought it'd be necessary to do this to make sure our legal system keeps up with the times hope we get past the bill the question is shall house bill 942 pass all in favor of that motion will

[03:13:22] record their votes aye those opposed no are the senators ready to vote have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll.

[03:13:40] Ayes 22, no 17. Ayes 22, no 17. House bill 942 passes. House bill 964, a bill relating to voter registration, restoration of political rights upon release from incarceration, certain adjudications reported from the committee on privileges and elections with a substitute and from the committee on Finance and Appropriations.

[03:14:08] Senator, junior senator from Virginia Beach. Thank you, Madam President. I move the committee substitute to be agreed to. The question is, shall the substitute from the Committee on Privileges and Elections be agreed to? All in favor of the motion will say aye. Those opposed, no.

[03:14:24] The ayes have it. The substitute is agreed to. Senator from Virginia Beach. Thank you, Madam President. I move the bill passes, speaking to that motion. Senator has the floor. Thank you, Madam President. The suspect is just a technical amendment which resolves a conflict between House Bill 694, Senator Locke's SB 162, Senator Pavola's SB 34, and Delegate Tran SB 1014.

[03:14:48] The definition of mental incapacity is to align the language, so the bills be the same. And this basically, that's what the bill does. Thank you, Madam President. I move the bill to pass. senior senator from Loudoun thank you madam president madam president I rise to speak in favor of the bill senator has

the floor thank you madam president I just want to note this bill seeks to update our Virginia Voting Rights Act it does say through a couple different ways but one of them is to put a legal test into the bill oh sorry wrong bill madam president the question is shall

[03:15:26] House Bill 964 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. House Bill 964 passes. House Bill 967, a bill relating to Elections Voting Rights Act of Virginia. Reported from the Committee on Privileges and Elections with Amendments and from the Committee on Finance and

[03:16:04] Appropriations. The junior senator from Virginia Beach. Thank you, Madam President. Thank you, Madam President. I move the committee amendments be agreed to. The question is, shall the amendments from the Committee on Privileges and Elections be agreed to? All in favor of that motion will say aye.

[03:16:19] Aye. Those opposed, no. The ayes have it. The amendments are agreed to. Senator from Virginia Beach. Thank you, Madam President. I move the bill pass. And speaking to that motion. Senator has the floor. Thank you, Madam President. The bill just revises provisions of the Voting Rights Act of Virginia.

[03:16:36] The amendment just clarifies ambiguous language for organizational purposes. move the bill pass senator from central fairfax thank you madam president speaking to the bill in support senator has the floor thank you madam president as stated this bill ensures that voters and civic organizations have a clear path to challenge any discriminatory changes to our election rules protecting every eligible voters voice at the ballot box it is our view and intent with the uh with this bill the the amendments that the totality of the circumstances uh standards

[03:17:12] uh in section 24.2-126 necessarily includes a localities ration for the challenged policy meaning that the courts must weigh both impact and legitimate reasons offered and with that i uh hope that we can pass and support this bill the senior senator from loudon thank you madam president madam president i rise to speak in support of the bill senator has the floor thank - Thank you, Madam President.

[03:17:36] Madam President, this is the bill I was hoping to speak about earlier. This bill includes in it new protections or additional protections for the Voting Rights Act in Virginia. Among those is the legal test for voter dilution, Madam President. I'll just note that that test is very similar to what was upheld, the constitutionality of the Voting Rights Acts in California, New York, in the PICO and Newburgh test.

[03:18:01] Madam President. - The question is, shall House Bill 967 pass All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[03:18:19] The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. House Bill 967 passes. House Bill 1014, a bill relating to incapacitated persons finding of lack of capacity to understand act of voting reported from the committee for courts of justice with the substitute and from the committee on finance and appropriations senator from Arlington thank you madam president madam president I move that the

[03:18:56] substitute be agreed to the question is shall the substitute from the committee for courts of justice be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from Arlington. Thank you Madam President. I move that HB 1014 pass and

speaking to that motion. Senator has the floor. Thank you Madam President. This bill is the is now identical to my Senate bill 34 which did pass the Senate. What this bill does is it now changes the default in our current statute where somebody is under

[03:19:31] a guardianship or a conservatorship the current law requires that that person lose the right to vote. This bill changes that and would require the judge to make a specific determination if that person were judged to have not the capacity to understand voting.

[03:19:53] The default would be the person retains the right to vote. So this is a really important measure. You never know, any one of us could be under a guardianship. So I think this bill is something that we should support it's certainly a human rights and I hope it is the will of the body to pass this measure the question is shall house bill 1014 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[03:20:28] desire to change their vote the clerk will close the roll I was 33 no six ice House Bill 1130, a bill relating to workforce housing for employees of a locality or school board, lease of surplus property reported from the Committee on Local Government with a substitute.

[03:20:58] Senator from Eastern Henrico. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee on Local Government be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. the ayes have it the substitute is agreed to senator from Henrika thank you madam president I move passage of the legislation and speaking to that senator has the floor thank you madam president House bill 1130 allows local school divisions to enter into public-private partnerships to create affordable housing for employees of the local school district it also allows school boards to

[03:21:33] lease surplus or underutilized property for 99 years to develop workforce housing It also allows for the ground lease revenue to be used for capital maintenance, educational enhancements, or housing stipends for employees. And lastly, Madam President, it caps the minimum lot size at 5,000 square feet where water and sewer exists, and it requires localities to allow manufactured housing on permanent foundations under the standards equivalent to site-built homes.

[03:22:01] So, Madam President, I'm hoping that we can move House Bill 1130 forward. The question is, shall House Bill 1130 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[03:22:18] Do any senators desire to change their vote? The clerk will close the roll. Ayes 22, noes 17. Ayes 22, noes 17. House Bill 1130 passes. House Bill 1140, a bill relating to use of confidential informants in drug-related investigations reported from the Committee for Courts of Justice with amendment.

[03:22:49] Senator from Eastern Fairfax. Madam President, I move that the Committee Amendment be agreed to. The question is, shall the amendment from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendment is agreed to.

[03:23:04] Senator from Fairfax. Thank you, President. I move that the bill pass and speak of that motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen of the Senate, this bill has to do with the use of confidential informants. Right now, there's no model policy about that, and this bill basically directs DCJS to come up with a model policy.

[03:23:21] We heard testimony on Monday from a parent of a young man, I guess, who was a drug addict who was used by a detective somewhere to try to gain access to some drug dealers, and he ended up being put back in a situation which caused him to start using again, eventually overdose.

[03:23:42] And her mother raised the, you know, the need that there ought to be model policies on this so that police officers are better informed about when and how and what kind of people to use as confidential informants in these kinds of situations so that people aren't put unnecessarily at risk.

[03:23:58] That's basically what the bill does. It does not have, like, an exclusionary rule or anything like that. So if the model policy isn't followed, it wouldn't automatically exclude evidence. This is basically advisory, I believe, to our law enforcement agencies. I'd hope we could pass the bill. the question is shall house bill 1140 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[03:24:25] desire to change their vote the clerk will close the roll ayes 38 no zero ayes 38 no zero house bill 1140 passes house bill 14 house bill 1144 a bill relating to water and sewer connection fees first-time homebuyers affordable housing reported from the committee on local government senator from eastern henrico thank you madam president i move passage of the legislation and speaking to that

[03:25:04] senator has the floor um thank you madam president this legislation authorizes but not does not require any locality uh to have the ability to reimburse first-time homebuyers for some or all of the utility connection fees um localities can tailor the program with income limits sales price caps or other criteria that fits their community's needs but this is enabling legislation that respects local control second the bill allows localities to have adopted affordable dwelling unit ordinances to waive these fees for developments subject to those ordinances that they adopt and if we're able to move this legislation forward this would be one more tool to help first-time home

[03:25:43] buyers madam president so i hope we can pass the bill the question is shall house bill 1144 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the role as 26 nose 13 ice 26 nose 13 house bill 1144 passes has bill 1207 a bill relating to paid

[03:26:21] family and medical leave insurance program notice requirements civil action reported from the the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations with a substitute. Madam President. Senator from Northern Fairfax. Thank you Madam President. We need to do a few more technical amendments on this to make certain that both my bill and HB 1207 are exactly in the same posture so I'd ask that we pass the bill by for today.

[03:26:53] Without objection House Bill 1207 goes by for the day. As bill 1212, a bill relating to small lot residential zoning district. Reported from the Committee on Local Government with amendments. Senator from Eastern Henrico.

[03:27:12] Thank you, Madam President. I move the committee amendments. The question is, shall the amendments from the Committee on Local Government be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it.

[03:27:28] The amendments are agreed to. Senator from Henrico. Thank you, Madam President. I move passage of the legislation and speaking to that. Senator has the floor. Thank you, Madam President. For

localities with populations over 50,000, this legislation will require that they create and maintain at least one zoning district permitting single-family homes on lots of 3,000 square feet or less.

[03:27:51] Localities can also satisfy this requirement by any existing zoning districts that meet these standards. And lastly, Madam President, we are just also offering this as legislation where the locality can put the zoning ordinance into place for just starter homes and home ownership opportunities.

[03:28:10] So again, I hope we can move the legislation forward. The question is, shall House Bill 1212 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[03:28:28] The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. House Bill 12, 12 passes. House Bill 12, 14. A bill relating to land development, solar canopies, and surface parking areas.

[03:28:49] Reported from the Committee on Local Government with a substitute. Senator from Eastern Henrica. Thank you, Madam President. I move the committee substitute. The question is, shall the substitute from the Committee on Local Government be agreed to? all in favor of the motion will say aye those opposed no the ayes have it the substitute is agreed to senator from Henrico thank you madam president house bill 1234 with this substitute is now conformed to Senate bill 26 which passed out of this body on a 2119 vote and madam president this legislation speaks specifically to parameters around solar canopies and surface parking areas and

[03:29:28] so I'm hoping we can move the bill forward to final passage the question is shall House Bill 1234 pass. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. House Bill 1234 passes. House Bill 1279, a bill relating to affordable housing, religious organizations,

[03:30:05] and other non-profit tax exempt properties reported from the committee on local government with the substitute the senior senator from prince william thank you madame president move the substitute be agreed to the question is shall the substitute from the committee on local government be agreed to all in favor of that motion will say aye those opposed no the ayes have it the substitute is agreed to senator from prince william thank you madame president i move the bill pass and speaking to the motion senator has the floor thank you madame president with the substitute The substitute is now conformed exactly to the Senate version that left this body.

[03:30:36] This bill, again, is to help reduce the red tape and help nonprofit and faith organizations to help us in the housing crisis. So this is limited prior five years, has to be owned by those organizations. All the other exemptions we adopted on the floor are in this bill, and now that we have the substitute that's been adopted, Madam President, move its passage.

[03:30:57] The question is, shall House Bill 1279 pass? in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the

[03:31:26] roll ayes 21 no 17 ayes 21 no 17 house bill 1279 passes house bill 1483 a bill relating to election of certain governing bodies single member districts required reported from the committee on local government madam clerk i believe we're on house bill 1395 oh i'm sorry skipped one has bill 1395

[03:32:00] a bill relating to prohibiting laurering age restrictions on trick-or-treating reported for the committee on local government that's why i skipped it senator from eastern henrico thank you madam president i move final passage of the bill and speaking to that motion senator has the floor thank you madam president um house bill uh 1395 um it just really is as it's stated prohibits localities from putting age restrictions on uh trick-or-treating um so madam president i'm hoping we can let kids be kids and pass this

[03:32:39] legislation the question is shall house bill 1395 pass all in favor of that motion will record their their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 18. Ayes 21,

[03:33:12] noes 18. House Bill 1395 passes. House Bill 1483, a bill relating to election of certain governing bodies single-member districts required reported from the committee on local government senator from Eastern Henrique thank you madam president I move final passage of the legislation and speaking to that motion senator has the floor thank you madam president House bill 1483 is similar to Senate bill 51 which passed out of this body on a 2614 vote and madam president this just adds some more technical parameters around the election of certain

[03:33:51] governing bodies and single-member districts and again it's similar to legislation we've seen earlier in the session so I'm hoping we can move this forward. Senator from Roanoke. Thank you ma'am president. Speaking very briefly to the bill. Senator has the floor. Thank you ma'am president. Just like the senator from Virginia Beach to junior senators from Virginia Beach's legislation the only problem with this bill is it's not more expansive. We ought to do this and have folks close to their constituents all over Virginia. Thank you ma'am

[03:34:22] President. The question is, shall House Bill 1483 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 26, noes 13. Ayes 26,

[03:34:47] noes 13. House Bill 1483 passes. Uncontested calendar. House bills on second reading.

[03:35:04] Senator from Eastern Fairfax. Madam President, I move that all the House bills on second reading and uncontested regular calendars, pages 71 through 76, House Bill 323 to 1309, that the rules be suspended in the second Constitution's reading, the titles be dispensed with. The question is, shall the rules be suspended in the second reading of the titles of House bills on the uncontested and regular calendars, pages 71 through 76, House Bill 323 through House Bill 1309 be dispensed with?

[03:35:33] All in favor of that motion will record their votes aye. opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, no 0.

[03:35:53] Ayes 39, no 0. The reading of the titles is dispensed with. Senator from Eastern Fairfax. The president asks that all those bills go by for the day. The question is, shall the House bills on the uncontested and regular calendars now on their third reading go by for the day? All in favor of that motion will say aye.

[03:36:14] Those opposed, no. The ayes have it. The bills will go by for the day. Page 77, uncontested calendar, Senate bills on second reading. Senate Bill 835, a bill to amend the Code of Virginia by adding in

Title 59.1, a chapter numbered 22.25, consisting of a section numbered 59.1-284.46, relating to Solid Rocket Motor Manufacturing Grant Fund.

[03:36:51] Senate bill sorry reporting from the committee on finance and appropriations senator from Portsmouth thank you madam president madam president I move that the bill be engrossed in advance to a stir constitutional reading the question is shall Senate bill 835 now be engrossed in advance to his third reading all in favor of that motion we'll say aye those opposed no the ayes have it the bill is engrossed and advanced Senate bill 836 relating to Transformer Manufacturing Expansion Grant Fund. Reported from the Committee on Finance and

[03:37:29] Appropriations. Senator from Portsmouth. Thank you, Madam President. Madam President, I move that the bill be engrossed and advanced to its third constitutional reading. The question is, shall Senate Bill 836 now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Uncontested calendar house joint resolution on third reading house joint resolution 28 establishing a joint subcommittee to study options for providing long-term sustainable and dedicated operations

[03:38:04] and capital funding with cost containment controls to ensure that the public transit systems that serve hampton roads including all modes of hampton roads transit service local and express bus light rail passenger ferry paratransit on-demand micro transit and seasonal truck trolley and shuttle services other ride sharing and commuter programs and any future modes of public transportation or mobility services that may be developed to serve the Hampton Roads region meet the growing public

[03:38:44] transit needs of the region report reported from the committee sorry reported from the committee on finance and appropriations senior senator from Henrico thank you madam president I move engross we need to agree to HJR 28 madam president I move that we agree to HJ 28 the question is shall HJR 28 be

[03:39:23] agreed to all in favor of that motion we'll say aye those opposed no the ayes have it hjr 28 is agreed to uncontested calendar senate joint resolution on third reading senate joint resolution 111 reconstitution reconstituting the booker t washington commemorative commission as a joint commemorative commission senator from hampton thank you madam president i move the resolution be agreed to. The question is, shall SJR 111 be agreed to? All in favor of that motion will say aye.

[03:40:03] Those opposed, no. The ayes have it. The motion is agreed to. Uncontested calendar. Senate resolution on third reading. Senate resolution 70 relating to a replica of the chair used by Lieutenant Governor Winston Earl Sears. Senator from Hampton. Thank you, Madam President. I move that SR 70 be agreed to.

[03:40:24] The question is: Shall SR-70 be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. SR-70 is agreed to. SR-71 relating to a portrait of Lieutenant Governor Winston Earl Sears.

[03:40:42] Senator from Hampton. Thank you, Madam President. I move the resolution be agreed to. The question is: Shall SR-71 be agreed to? All in favor of that motion will say aye. those opposed no the eyes have it sr 71 is agreed to senator from eastern fairfax thank you madam president i'm going to ask that we stand at ease for 15 minutes so that um the clerk staff can have time to throw together a supplemental counter for us so we can knock out a round of

[03:41:15] these uh the back in the fourth then after we've done that i suspect we will probably recess for a while to knock out some bills and courts of justice and then probably have to come back again for a final round of back and forth I think is where we're headed but we've been the house has been out for like the last 45 minutes and they're coming back in they should have been back in two minutes ago so that's kind of where things are just everybody has an idea where we're going today so 15 minutes

[03:41:48] Senate will be at ease for 15 minutes then it will return to order clerk will

[04:13:37] report any communications from the House of Delegates chair recognizes the Senator from Eastern Fairfax. Madam President, I move to waive the reading of the communication from the House of Delegates. The question is, shall the reading of the communication be waived? All in favor of waiving the communication from the House of Delegates will record their votes aye.

[04:14:09] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 36, Ayes 36, noes 4. The reading of the communication is waived.

[04:14:30] The clerk will call the calendar. Supplemental calendar number 1, Senate Bill 118 has passed the House with a substitute. Senator from Hampton.

[04:14:49] Thank you, Madam President. This is the iGaming bill, and the House put on a substitute, and I would move that we reject the substitutes with the recommendation that we agree to it. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 118?

[04:15:22] All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Aye, zero, no, 40.

[04:15:39] Aye, zero, no, 40. The Senate does not concur. Senate Bill 129 has passed the House with a substitute. The senior senator from Prince William.

[04:15:56] Thank you, Madam President. With the recommendation that it be rejected, I move the adoption of the House substitute. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 129?

[04:16:12] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. I zero, no, 40.

[04:16:28] I zero, no, 40. The Senate does not concur. House bill, Senate bill 542. The Senator from Eastern Henrico. Has passed the House with a substitute. Senator from Eastern Henrico.

[04:16:48] Thank you, Madam President. I move the Senate concur with the House substitute. The question is, does the senator wish to speak to that motion?

[04:17:09] Madam President, can this go by temporarily? Without objection, Senate Bill 542 goes by temporarily. Senate Bill 661 has passed the House with a substitute.

[04:17:31] The junior senator from Virginia Beach. Thank you, Madam President. With the recommendation that it be rejected or moved to House amendments, the House substitute be agreed to.

With the recommendation that it be rejected, the question is, Shall the Senate concur with the House substitute for Senate Bill 661?

[04:17:49] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll.

[04:18:07] Aye zero, noes 40. Aye zero, noes 40. The Senate does not concur. Senate Bill 725 has passed the House with a substitute. Senator from Richmond City. Madam President, with the recommendation that it be rejected, I move the House substitute be agreed to. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Of all the senators voted, do any senators desire to change their vote? The

[04:18:47] clerk will close the roll. I zero, no's 40. I zero, no's 40. The Senate does not concur. Senate bill 756 has passed the House with a substitute. Senator from Eastern Fairfax. With the recommendation that it be rejected, I move we concur with the House substitute. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate bill 756?

[04:19:22] All in favor of that motion will record the, will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[04:19:37] I 0, no. 40. I 0, no. 40. The Senate does not concur. Senate Bill 609, the House has insisted on its substitute and request a committee of conference. Madam President.

[04:20:00] Senator from Portsmouth. Madam President, I move that the Senate a C to the House request for Committee of Conference on Senate Bill 609. The question is, shall the Senate accede to the request for Committee of Conference on Senate Bill 609? All in favor of that motion will record their votes aye. Those opposed no.

[04:20:21] Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 1. Ayes 39, Nose 1. The Senate accedes. Conferees on the part of the Senate is named by the Chairman of Chair of Senate Finance and Appropriations, Senator Lucas or

[04:20:47] Senators Lucas Deeds Pillian. That's it. Return to page 3 of the calendar, Senate Bill 542. Senator from Eastern Henrico. Thank you, Madam President. With the

[04:21:22] recommendation that it be rejected, I move that the substitute be agreed to. With the recommendation that it be rejected, the question is, shall the Senate concur with the House substitute for Senate Bill 542? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote?

[04:21:44] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Aye zero, no's 40. Aye zero, no's 40. The Senate does not concur. Senator from Prince William.

[04:22:05] Madam President, I move that the Senate go into recess until 5:30, so that should give us 90 minutes to go to courts and general laws. So you have 90 minutes.

[04:22:38] The Senate will be in recess until 5:30. The clerk will read any announcements on the desk. The Committee on General Laws and Technology will meet immediately upon recess in Senate Room B, GAB. The Committee for Courts of Justice will meet immediately upon recess in Senate Room A, GAB. The Senate

[04:23:08] will be in recess. Clerk will read any communications from the House of

[06:31:00] Delegates. Madam President, I move to waive the reading of the communications from the House. Question is, shall the reading communication be waived? All in favor of waiving the reading of the communications from the House of delegates will record their votes aye those opposed no are the senators ready

[06:31:24] to vote all senators voted any senators decide to change their vote for me the

[06:31:46] clerk will close the roll ayes 34 noes 5 ayes 34 noes 5 communication is waived and I'm looking for the senator from the senior senator from Prince William I was looking for the senior senator from Eastern Fairfax but Prince Thank you, Madam President.

[06:32:20] We're now on page 9. Is that correct, Madam? Yes. Thank you. Madam President, I move that the House bills on unfinished business on page 9 through 11, House Bill 30 through House Bill 1272 be placed in a block to insist and request the Committee of Conference.

[06:32:35] Any Senator desiring to remove a bill from the block, please do so after the Clerk has read the number of the bill. The question is, shall the House bills on unfinished business on pages 9 through 11, 11 and that is house bill 30 through house bill 1272 be placed in the block to insist and request committee of conferences with the understanding that any senator desiring a bill be removed from the block will do so after the clerk has read the number of the bill all in favor of that motion will say aye those opposed no the ayes have it the motion is agreed to the bills are before us in

[06:33:14] the block. The clerk will read the numbers of the bills. House Bill 30. The House has rejected the Senate amendments. House Bill 145. The House has rejected the Senate substitute. House Bill 161.

[06:33:35] The House has rejected the Senate substitute. House Bill 400. The House has agreed to the Senate substitute. House Bill 642, the House has rejected the Senate substitute.

[06:34:01] House Bill 665, the House has agreed to the substitute. House Bill 796, the House has agreed to the substitute. House 1233, the House has agreed to the substitute.

[06:34:18] House Bill 1272, the House has rejected the Senate substitute. The question is, shall the Senate insist and request committees of conference on the House bills in the block?

[06:34:39] Are the senators ready to vote? Have all senators voted? Do any senator desire to change their vote? The clerk will close the roll. Ayes 39, no 0.

[06:34:57] Ayes 39, no 0. The motion passes. Yes. Conferees on the part of the Senate as named by the Chair of Finance and Appropriations, Senator Lucas are Senators Lucas, Deeds, Locke, Pillian, and Stewart. Comferees on the part of the

[06:35:32] Senate on House Bill 145 is named by the Chair of General Laws and Technology, Senator McPike, or Senators McPike, Carol Foy, and Reeves. Comferees on the part of the Senate on House Bill 161 is named by the Chair of General Laws and Technology, Senator McPike, or Senators Locke, McPike and

Pillian. Comfrey's on the part of the Senate for House Bill 642. Comfrey's on the part of the Senate is named by the Chair of Rehabilitation and Social Services, Senator Von

[06:36:10] Valkenberg, Senators Ed, Von Valkenberg and Rouse. Comfrey's on the part of the Senate on House Bill 1272 is named by the Chair of General Laws and Technology, Senator McPike, or Senators Rouse, McPike and head on Senate bill 609 we have an additional conferee is named by the chair of finance and appropriations Senator Lucas and Senator aired is the

[06:36:46] addition the Senate will be at ease order chair recognizes the senator from

[06:43:51] eastern Fairfax I think my president rice for announcement senator head floor thank you madam president since ladies gentlemen said we got one more round we got to do we're waiting for an exchange to come back from the from the House of Delegates and then a series of motions we're gonna make before we can wrap up today but uh madam president I would ask if we could just go to the there's anything else we could wrap up that we normally do you have points of personal privilege that kind of thing we turn to that part of the dog at the morning hour I guess if we could return to the morning hour we knock that out um while we're waiting around senator we're returning to the morning

[06:44:30] hour the senator from Fairfax eastern Fairfax oh madam president I got a point of personal a privilege. Eastern Fairfax, Senator Serval, you have the floor. Thank you, Madam President. Madam President, so yesterday we heard some dialogue on the floor about Stephanie Mentor, and I heard there was some other conversation about her over across the courthouse square earlier today, and

[06:45:09] I just wanted to relate a few things about that. First of all, Stephanie Mentor, who was murdered a couple weeks ago, was murdered in the 34th Senate District, which I represent, where I've lived my entire life. And her murder was extraordinarily disturbing for a lot of reasons.

[06:45:28] Apparently, she was just riding the bus, bus home, got off the bus, got followed off the bus by this guy, Abdul Jalloh, who was not, I'm told from what I read, not legally present in the United States, had a lengthy criminal history, and it was murdered, stabbed multiple times. I've read other things, heard other things today about how the police department had them on their radar and they were concerned about them.

[06:45:56] But what bothers me about the dialogue I've heard so far, Madam President, is there's finger pointing going on with regard to Ms. Minter's murder, which has greatly upset my district. But from my perspective, the finger is not pointed in the right place.

[06:46:14] And I want to note that Mr. Jalow, I don't even want to call him Mr. He was arrested at one point in 2018 and incarcerated in the Fairfax County Adult Detention Center. And upon release from the Fairfax County Adult Detention Center, he was picked up by ICE.

[06:46:36] ICE picked him up from jail upon his release, and they took him away. And if I'm not mistaken, in 2018, the president at the time was somebody named Donald Trump. Somehow, Mr. Minner left the grasp of ICE.

[06:46:55] Not really sure how, but he did. Mr. Jouleau, he left the grasp of ICE, and we don't know how. After that, he was arrested multiple times.

[06:47:12] Between 2018 and 2023, he was arrested three times. Fairfax County Sheriff's Office said, even though they input his arrest in V-CIN, and that ICE has access to that, and ICE is notified about it, ICE did

not bother to lodge a detainer, then he was arrested again in 2023, ICE did make an informal request, an informal request, not a judicial warrant, this guy was released to Cornerstones, which is a mental health treatment program, ICE didn't bother to reach out to Cornerstone, I guess, and didn't bother to pick him up there, and he was released,

[06:47:52] he got arrested eight more times, ICE didn't issue any detainers, ICE didn't ask for him arrested even though they were notified about his arrest. The president at the time for those arrests was Donald Trump. And so, Madam President, what I'm so disturbed about, about all the finger point I hear going on here, is ICE had this guy in their grasp. They knew he was a violent criminal, they released him, they had the opportunity, they were notified electronically repeatedly

[06:48:29] that he was being arrested repeatedly, and they elected not to do anything about it. Why was that? maybe it's because they're busy shooting poets maybe it's because they were busy shooting nurses maybe it's because they're busy with their surge in minnesota or memphis or all the other places instead of doing what the president promised he was going to do when he ran for office which was to capture and deport violent undocumented immigrants which apparently is not what they have an interest in doing because 75 of the people who didn't pick up don't have any

[06:49:08] criminal history and from my perspective, if my district's perspective, there's a dead person in my district because ICE seems focused on doing things other than what the president promised and what they should be doing, which is focus on keeping us safe. The Madam President, that's what bothers me about the conversation I've heard for the last 48 hours and the people in my district want to be safe and they want ICE to focus on the right people and not focus on people that are just out trying to live their lives. That's all I wanted to say Madam President, thank you for the time.

[06:49:39] while we're in the morning hour would there be another senator from franklin county senator stanley thank you madam president good evening to you it's great to see you too sir and uh madam president i stand for a point of personal privilege senator you have the floor thank you madam president uh i listened to my friend from eastern fairfax and and i must say i get a little dismayed by it because you know he and i grew up together practicing and running up and

[06:50:17] down the halls of the fairfax county courthouse we dealt with prosecutors and prince william County, Loudoun County, Fairfax County. We learned our trade there. We learned how to become good trial lawyers. And we had really good prosecutors, a really good prosecutor at the time who was a law and order Democrat. And when I lived in Fairfax, it was a very safe place. We didn't have things like this. I remember when I was a young kid, a friend of mine named Billy Vassidi died in 1978.

[06:50:48] It was the first murder they'd had in like 20 years. That was Northern Virginia back then. And And it was like that until recently when it came to the courthouse and to the Commonwealth's attorney's office, when we elected somebody who does not prosecute cases, does not enter into courtrooms, and quite frankly, is more worried about a political agenda than, in my opinion, he is about protecting the people that he serves, that elected him.

[06:51:16] And quite frankly, it bothers me to no end when I hear that suddenly this is now Donald Trump's fault. We always seem to, at least recently, turn everything back to ICE and Donald Trump. But when I was listening to my friend from Eastern Fairfax talking about the dates, when ICE was picking him up, letting him go, not following up, not getting him, all of those dates, and I'm not a math guy, but I tried the best I could, was during the previous administration, not the Trump administration.

[06:51:49] Not even close. And as these acts started continuing, and when he says ICE didn't pick him up, But it was also because the policy at that time in the United States of America and for federal agents trying to do their job was, guess what?

[06:52:07] Not picking them up, releasing them into the public, just like the prosecutor in Fairfax. And so I also saw, there's a reporter out of Northern Virginia, his name is Nick Minnock, and he submitted some FOIAs and allowed me, Madam President, to read these to you, which demonstrates exactly what the problem was.

[06:52:29] And he writes, "According to emails I obtained, Fairfax County Police didn't warn Fairfax County Commonwealth's Attorney Steve Descano's office once, but at least three times last year about a violent illegal immigrant who is now charged with murdering a Virginia mother.

[06:52:45] And what did Descano's office do? Drop charges and let the man return to the community. Quote, and this is from the police, unfortunately, based on MTV Station's numerous dealings with him, it is not a question of if, but rather when he will maliciously wound or worse again.

[06:53:03] My role in keeping the public safe prompts me to follow up on his status, a police major told Descano's office this past November. In May, Fairfax County Police Department told Descano's office, quote, This individual has a long history of stabbing community members and is currently on probation for doing that very thing.

[06:53:26] He has shown a blatant disregard for human life and is a danger to the community. Madam President, boy was he, because he took the life of Stephanie Minter, who did not deserve to die. And so when you put policy out there, when you're the president, and your policies, we're not enforcing immigration, we're not deporting people, we're letting everybody in, the borders are open, come on over.

[06:53:53] Then this is what you get when you mix it with a prosecutor that puts policy before the safety of the people that he serves. This is what you get. Ladies and gentlemen and Madame President, the world and this country and our counties and our towns and our cities are on notice from our federal government that we are here to get rid of the dangerous illegal aliens that are now dwelling and living in our neighborhoods to make sure that we don't have a Stephanie Minter again.

[06:54:26] And yet we still see from the executive branch, unfortunately, a statement which says, with this guy right here that killed Stephanie Minter, we'll be happy to comply with him if we get a judicial warrant, which they know when they make that statement, that's just not going to happen because those don't exist.

[06:54:51] Those are not tools in the toolbox for ICE, for our federal government partners, our law enforcement partners. So we kind of seem to be on a hamster wheel and we always get back to, well, it must be the current president. policies that were in place before that administration by the previous administration and a prosecutor who decides that the office is political and has no intent on keeping residents in Fairfax County Fairfax City safe then

[06:55:26] this is what you get this is what you get and we failed the mentor family let's just admit we failed the mentor family it's not that hard to do when we admit that we failed the mentor family then let's do something about it you can hate the president you can hate certain government agencies law enforcement agencies but they're enforcing the law that the federal legislature passed they're sworn to uphold not only the law but also to put public safety first for

[06:56:02] if we do whether we're a commonwealth attorney a state police officer or a federal agent with a federal enforcement agency then we will not have a death in vain like we just saw with a beautiful life force named Stephanie Minter who's gone from this planet too soon and we could have done something about it and we failed.

[06:56:31] If we are here to do one thing, and we do many things, one of the pillars of government is public safety. Let us put that first. Let us put the partisanship aside and think about protecting beautiful human life like Stephanie Minter.

[06:56:48] Thank you, Madam President. We'll be at ease for about two or three minutes.

[06:57:19] Madam President, I move to waive reading of the House communications.

[07:00:52] The clerk will report any communications from the House of Delegates. The chair recognizes the senator from Eastern Fairfax.

[07:01:13] Senator Serval. Madam President, renew my motion to waive the reading of the communication from the House of Delegates. The question is, shall the reading of the communication be waived? All in favor of waiving the communication from the House of Delegates will record their votes aye. Those opposed, no.

[07:01:30] Are the senators ready to vote? Do any senator desire to change their vote? The clerk will close the roll. Ayes 35, noes 3. Ayes 35, noes 3 Communication is waived The Senator from Eastern Fairfax Thank you Madam President Madam President I move that all the Senate bills on the unfinished business on pages 2-7 Senate bills 118-756 Be placed in a block to a seat due to the request for committees of conference Any Senator Desiring move bill from the block

[07:02:09] Please do so after the clerk has read the number of the bill The question is Shall the Senate bills on unfinished business on pages 2-7 that is Senate Bill 118 through Senate Bill 756 be placed in a block to accede to the request for committee of conference with the understanding that any senator desiring a bill removed from the block will do so after the clerk has read the number of the bills.

[07:02:36] All in favor of that motion? We'll say aye. Those opposed? No. Ayes have it. The motion is agreed to. The bills are before us in the block. The clerk will read the number of the bills.

[07:02:52] Senate Bill 118, Senate Bill 129, Senate Bill 542, Senate Bill 661, Senate Bill 725, and Senate Bill 756.

[07:03:11] The question is, shall the Senate accede to the requests for committees of conference on the Senate bills in the block? All in favor will record their votes aye, those opposed no, are the senators ready to vote?

[07:03:29] Have all senators voted. Do any senators desire to change their votes? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0.

[07:03:47] Comfrey's on the part of the Senate on Senate Bill 118, as named by the chair of the Senate Committee on General Laws and Technology, Senator McPike, or Senators Locke, McPike, and Pillian.

[07:04:04] Comfrey's on the part of the Senate for Senate Bill 129, as named by the Chair of General Laws and Technology, Senator McPike, Senators McPike, Carol Foy, and Reeves. Comfrey is on the part of the

Senate for Senate Bill 542 as named by the Chair of Rehabilitation and Social Services, Senator Van Valkenburg, or Senators Aird, Van Valkenburg, and Rouse, and Head.

[07:04:32] Comfrey is on the part of the Senate on Senate Bill 661 as named by the Chair of General Laws and Technology, Senator McPike, Senators Rouse, McPike, and Head. Conferees on the part of the Senate on Senate Bill 725 is named by the Chair of the Committee for Courts of Justice, Senator Cerevelle or Senators Jones, Carol Foy, and Stanley.

[07:04:59] Conferees on the part of the Senate on Senate Bill 756 is named by the Chair of the Committee on General Laws and Technology, Senator McPike, Senator Ceravelle, Marsden, and Reeves.

[07:05:16] And we have an addition on House Bill 642, is named by the Chair of Rehabilitation and Social Services, Senator Van Valkenburg, and the addition is Senator Head.

[07:05:35] The Senator recognizes, the Chair recognizes, I'm going to go to the Senator from Prince Williams. Well, if he's in his chair, I'll go to the Senator from Eastern Fairfax.

[07:05:55] Sorry, Madam President, I thought I was done for the day, but Inquiry of the Clerk, are we at that point? Yes. Okay, Inquiry of the Clerk, does that finally complete today's Revenue Day calendar? Yes, sir. Is there any other business to come before the Senate?

[07:06:12] The Clerk will report any announcements on the desk. Tomorrow, Thursday, March 5th, the Hampton Roads Caucus will not meet. The Finance and Appropriations Subcommittee on Health and Human Resources will meet at 7:30 a.m. in the Senate Finance and Appropriations Room 13th Floor, GAB. The Committee on Education and Health will meet at 8:30 a.m. in Senate Room A, GAB. The Democratic Caucus will meet at 11:15 a.m.

[07:06:43] in Senate Room 1 of the Capitol. The Republican Caucus will meet at 11:30 a.m. in Senate Room 2 of the Capitol. Thank you, Senator from Virginia Beach. Senator de Staff.

[07:06:58] Thank you, Madam President. I rise for an announcement. Senator has the floor. Madam President, I'd like to announce the Aviation Caucus, the last meeting of the year, tomorrow morning at 8 a.m. in room 600B. And we've got an interesting brief on EMPs and drones.

[07:07:17] So again, tomorrow morning, the Aviation Caucus, 0800-600B. Thank you. Thank you. Chair calls on President Pro Tem. Senator Mamie Locke. Senator from Hampton.

[07:07:36] Madam President, I move that the Senate do now adjourn until 12 noon tomorrow. Would there be another? The question is, shall the Senate adjourn until 12 noon o'clock tomorrow?

[07:08:04] All in favor of the motion, we'll say aye. Those opposed can say no. As have it, the motion is agreed to. The Senate stands adjourned until 12 o'clock tomorrow. To stay connected with live sessions, catch up on past meetings, and explore our full archives anytime on the Senate of Virginia's YouTube channel,

[07:08:49] this is the Senate of Virginia, Richmond, Virginia,

[07:10:12] This is the Senate of Virginia, Richmond, Virginia.



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